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THE YALE POLITIC

AN UNDERGRADUATE JOURNAL OF POLITICS

Winter 2007 Volume LXI, Issue I

The Future of the United Nations

A New Day at Turtle Bay?

Featuring

John Bolton
FORMER UNITED STATES AMBASSADOR TO THE UNITED NATIONS

Charles Hill
FORMER STATE DEPARTMENT OFFICIAL

Jean Krasno
ACADEMIC COUNCIL ON THE UNITED NATIONS SYSTEM

Fiona Creed
YALE UNIVERSITY

Linda Fasulo
UNITED NATIONS CORRESPONDENT, NBC

Also With

Angela Stent
GEORGETOWN UNIVERSITY

Hyeong Jung Park
BROOKINGS INSTITUTION

Derek Douglas
CENTER FOR AMERICAN PROGRESS

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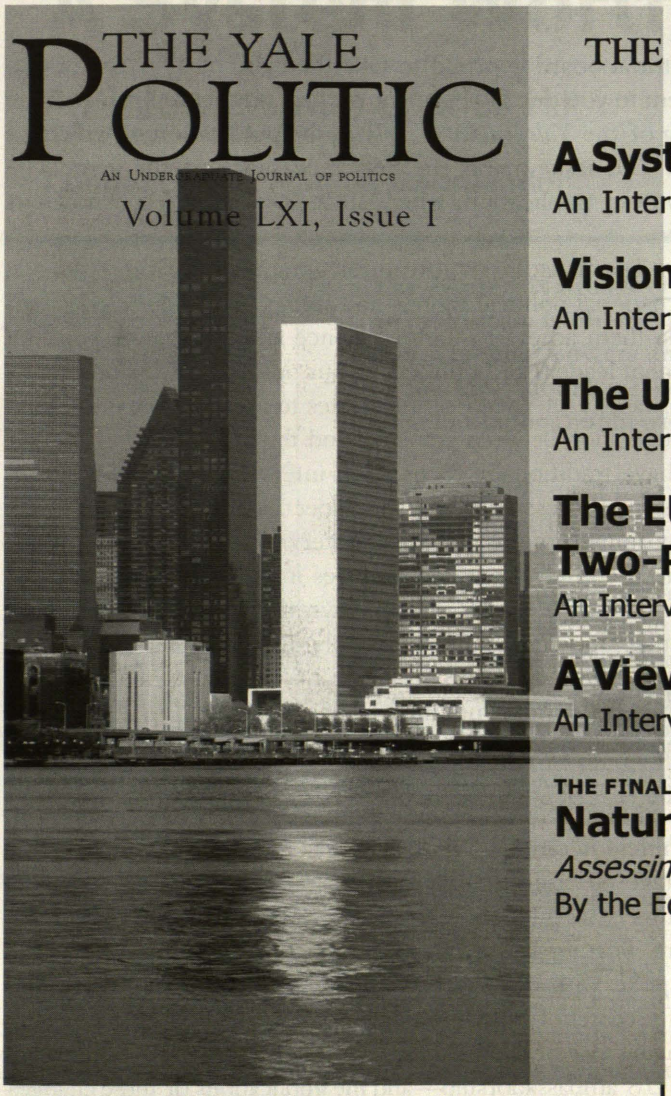

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The Yale Politic
P.O. Box 201452
New Haven, Connecticut 06520-1452

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Dear Reader,

The new editorial board is proud to take the helm of The Yale Politic and to present to you our first issue of the year on the 60th anniversary of the founding of the *Yale Journal of Politics*, the publication to which we trace our roots. This issue marks the first appearance of the name The Yale Politic on our publication, which since 2001 had been known as simply *The Politic*.

Each issue of The Yale Politic features commentary from students, academics, and national political figures and serves to empower our readers by providing them access to the experience and insights of some of the most prominent leaders and thinkers of our time. Building upon Yale's rich political heritage, The Yale Politic strives to promote greater understanding and cooperation between academia and the world of politics.

Though we have traditionally focused on interviews with and articles by public figures and professionals in their respective fields in greater number than student opinion pieces, we are still very much a student publication, one produced entirely by undergraduates in Yale College.

The editors of the *Yale Journal of Politics* wrote in their first edition in February 1947 that students include "not only the traditional body of 18 to 22 year olds...but also the large group of...older, more mature, more responsible members of the community." They anticipated that each contributor over the years has been a student of politics and policy even if learned in their field through years of experience. No observer of the political, those editors believed, could move beyond being a mere student, for the limitless iterations of circumstance render human interaction on the public stage far from predictable.

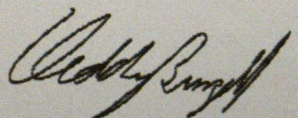
Our feature this issue ponders the past, present, and future of an institution under fire. Former U.S. Ambassador to the United Nations John Bolton—who spoke with our staff as his tenure came to a close—has been at times at the center of this controversy. This and other feature articles explore the changing face of the United Nations—in both its secretary-general-ship and the U.S. ambassadorship—and the implications of these changes.

In our International section as well we explore the current state of international cooperation and the varied successes of international bodies and the future roles they will play among the nations of the world. In this line of thought, two of our pieces address the European Union, and one comments on a developing nation's experience with the World Trade Organization.

Three Yale World Fellows—visiting international scholars, all leaders in their fields—weigh in on their respective nations: Tomáš Sedlácek on the Czech Republic, Garentina Kraja on Serbia, and Tung Ngo on Vietnam. Coverage of the upcoming Taiwanese elections and two scholars' perspectives on the current situation in North Korea round out this section.

Our National section takes the pulse of the war on drugs, of American labor, and of economic opportunity in the modern United States.

This magazine would not be possible without the generosity of our sponsors, to whom we are grateful, and our readers. Thank you all for your continued readership and support.



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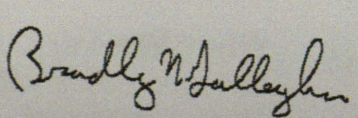
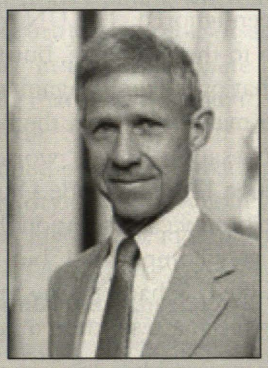


Bradley Gallagher

A System Worth Saving

An Interview with Charles Hill

Conducted by Maggie Goodlander



Charles Hill served as a career minister in the U.S. Foreign Service, including time as an executive aide to former Secretary of State George P. Shultz (1985–89) as well as a special consultant on policy to United Nations Secretary-General Boutros Boutros-Ghali from 1992 to 1996.

The United Nation's effectiveness as an institution is often called into question. On what powers and capabilities of the UN should we be focused? Of what limitations ought we be conscious?

The UN is the most important organization resting at the center of the international state system. The UN is the organization of its member states, so it's not some untethered institution that floats above the nations of the world and gives a higher and better authority of what the world should be like. It is a mechanism of the states and serves the states, and it should be trying to strengthen the international state system.

Collective security is the UN's main function and the issue that gets the most attention. There are many other elements of the organization—development, statistical gathering, and health—but the one that seems to be indicative of whether the UN will rise or fall in its reputation is collective security. That's a problem. It's not because it's a problem of the UN, but it's a problem of the concept of collective security. So if we look back at the UN in twenty years, we'll see how well it does collective security—that is the issue. So we want to do what we can to make it effective when it comes to an issue or a crisis of collective security.

What are the necessary global and internal conditions for successful reform of the UN to take place? Which initiatives do you believe are most pressing at the moment?

Reform has been going on for a long time. The problem of reform at the United Nations is largely that the UN still remains a kind of third world bureaucracy. As such, it is just not up to the standards of those first class institutions. Whether there are matters of patronage, accounting, oversight, budgeting, personnel management, or redundancy—and all of those are issues in today's UN—we've got to clean it up. And I don't think that's been going forward very well.

Reform has been very slow because often the states that want reform will be the same states to block reform. If reform should come, it may impinge upon a state's interests. So for example, Country X will say we should eliminate two of the three now-redundant organizations for women that are on three separate continents, because they are redundant. But if that actually means that the women's center in their territory will be eliminated, then they block it. So these challenges are simply built into the system, and we have to go at it and try to overcome those issues. Those are managerial reforms that will allow UN to run effectively, the way a large corporation runs itself. And the UN isn't there yet, but it's headed in that direction. These are matters of auditing and accounting—managerial matters.

The political reforms are something else. They are the reforms of the membership of the Security Council. Those will be dependant upon the political atmosphere of the world at a particular time. We have not been in such an atmosphere for decades now. The question of UN Security Council membership reform just gets blocked again and again. It's not that a particular country wants to stop it, but whenever one country comes forward as a possible addition to the Security Council, a coalition of other states will rise to block it. So that kind of reform is simply not going to happen in the foreseeable future. This means that we're going to stay

General Transition: Newly-elected United Nations Secretary-General Ban Ki-Moon with outgoing Secretary-General Kofi Annan. Mr. Hill gives Annan a "straight-B" rating and is optimistic about Ban's potential. (Stan Honda/AFP/Getty Images)

with something like the current Security Council membership, and so we need to make the best of it.

Last year you wrote that President Bush had the chance to help the UN "save it from itself by offering it a final opportunity to get serious." Has the President made the United Nations any more serious?

The U.S. is making the UN serious because since September 11, 2001 the U.S. has gone back again and again to the Security Council to ask for resolutions of authorization. The Security Council has to a large degree met those requests. Before that, in the 1990s, the UN Security Council was severely marginalized. Looking back at the negotiations leading up to the Bosnian War, the UN was effectively kept out of negotiations. It was disparaged. In the 1996 war in Kosovo, no one even thought of going to the UN Security Council for authorization. The UN was really in an almost moribund state. Since then, particularly since 2002, the U.S. has looked to the UN. Now we have the new Iraqi government asking the Security Council to reauthorization the U.S. to remain in Iraq for another year. Ten years ago that would have never been done. The UN simply would have been ignored. So that kind of request and the UN Security Council's response are the kind of things that over time will strengthen and give more credibility to the UN.

If it weren't for the U.S. and what it has done particularly for the Security Council, there wouldn't be a Resolution 1701 on Lebanon, there wouldn't be a Resolution 1718 on North Korea, and there wouldn't be the pointing of the UN and the IAEA toward the possible UN security actions that are now in the works in Iran. In those three cases, the UN would have been ignored. The UN may or may not step up to the challenge, but the U.S. is offering it that opportunity again and again and trying to make it work in the best possible way. Ambassador Bolton worked very hard on Resolution 1701 and made a huge diplomatic effort to produce a resolution that is very adroit and very complicated, but far from perfect. But if the U.S. hadn't done that, there wouldn't have been a resolution at all.

The case of Jan Pronk, the former Head of Mission for the United Nations Mission in Sudan, raises questions about the role of diplomacy and neutrality amidst genocide. What is your view of Pronk's departure from Sudan?

Mr. Pronk is a very distinguished and highly-regarded diplomat with extensive experience. He was in charge of producing and bringing about a peace agreement for Darfur a year ago. That agreement has not gone forward; there were some structural problems with the agreement, and it has been a mistake, I think, in the UN's diplomacy over the course of the past year to have kept setting deadlines for the parties to deal with or accept this peace agreement. These deadlines have been moved, and there have been no consequences for these failures to reach an agreement. So, increasingly over these months the UN has lost credibility. When you set deadlines and the other party knows them and nothing then happens, then your diplomacy sinks and sinks and sinks in the eyes of the other. And on Darfur, that's what happened.

I don't know when Mr. Pronk began to blog, but I do know that he said more or less that he had given up on the diplomatic process and that he was going to get involved with the politics of it. I think he was personally involved with it, emotionally involved with it—perhaps properly so, but you can't be a diplomat, and you can't be effective as a mediator, if you do what he did. So he had to be withdrawn, and that was the end of his usefulness on the Darfur issue.

At what point, if ever, do neutrality and diplomacy

take a backseat to holding rogue nations accountable for inhumane and atrocious action?

Diplomacy has been designed to do that. In other words, UN diplomacy should be aimed at exhausting the remedies on Darfur. The next step would be a Chapter 7 resolution that would authorize the use of force. But that's when we're caught in a situation where the security measures have stalled out like an airplane engine that suddenly just stops running when it gets to a certain altitude. When a security resolution or agreement gets to be so high up there in the stratosphere the engine just might conk out. And that's pretty near to where we are with Sudan and Darfur. So it isn't that diplomacy stops so much as it is handed over. Diplomacy at a certain point—through the Security Council—should authorize the use of force and then just go ahead and do it.

Should we exercise the Chapter 7 option in Darfur?

Chapter 7 would be our next option, but it would mean going against the wishes of Sudan. But it won't happen because somebody would veto such a resolution. So that means that collective security on Darfur is not going to work, which brings us back to our first question. That's what the UN's got to worry about.

History shows that there are moments when language and rhetoric simply fail to bring order to chaos and controversy. Is North Korea an example of the limitations of negotiation and dialogue in international relations? As the six parties proceed talking with North Korea, is this discourse merely delaying the problems rather than solving them?

That process has not yet run its course. So the six-party talks are still the way to go. The North Koreans are gaining with that process. It's a familiar game. They will continue to play the game, but increasingly the other five parties involved in this are pushing the walls in on North Korea, very slowly, bit by bit, to increase the pressure on the regime. At the same time, they're opening the possibility for North Korea to come back to the table in a six-party setting. So that still has a way to go, and that is not over by any means.

How will the sanctions fare in North Korea?

It's still too early to tell. The main interests that are going to be affected are financial, and the sanctions affect access. So that may mean that the sanctions are unilateral—not through the UN—because there is resistance from China, Russia, and South Korea. The most important sanctions that have been taken on are by individual nations, such as the Japanese sanctions or the American attempts to shut off the ability of North Korea to use the international financial system to do damage to the outside world.

THE PROBLEM OF REFORM IS THAT THE UN STILL REMAINS A KIND OF THIRD WORLD BUREAUCRACY.

Can you point to anything that may have prevented this sort of escalation in North Korea?

It's hard to believe that there's much that could have been done, because North Korea for some years now has been running an extortion racket. That is, they threaten that they will do some kind of damage or harm, and then they expect you to pay them off not to do it. They've got to fire off occasional missiles. A few years ago one of their missiles went over Japan. Now they're making underground explosions. These are ways of proving to the world that North Korea is dangerous and that you for your own good should pay them off to stop them from doing these bad things. And the reaction of the outside world has been sufficiently accommodating to encourage them to continue doing that. Some countries are arguing to the U.S. that the U.S. should just sign another agreement with North Korea, like in 1994. We argue that they probably wouldn't keep it, but it might slow them down. And I think that's a mistake. I think we need to take a more firm stance on the issue.

As Kofi Annan closes his term of service in the United Nations, how would you characterize the strengths and weaknesses of Anan's performance as Secretary General? What do you believe Ban-ki-Moon will offer to the position?

I think that Secretary Annan has done a pretty good job. I think he's taken on the role of a kind of international conscience that sometimes secretaries-general feel they need to do. He's also made some mistakes. I think his biggest mistake was the Oil-for-Food scandal. That really did damage to the UN. All of these years of trying to get the UN back on its feet were set back severely by this mismanagement, and it has to be laid at the feet of Kofi Anan. Nonetheless, overall I would say he's sort of a straight-B performance.

Ban ki-Moon is from a somewhat different background. Secretaries are generally either from inside the UN bu-

program specifically, but came from basic problems in the UN structure itself. His reasoning was that Oil-for-Food did not spring out of thin air—it was staffed by UN people, and it followed UN procedures.

He traced the source of the problems; they were problems that existed in the UN well before the Oil-for-Food Program was created. Therefore his conclusion was that the kinds of changes that were needed were systemic modifications of the UN itself. It was not simply a question of ad hoc reforms in the Oil-for-Food Program, or a similar program in the future. He focused on financial accounting, internal controls, and integrity of the management structures. Those are all analyses that we support; we support the reforms he suggested.

Nuclear Threat: Both Iranian President Mahmoud Ahmadinejad, above, and North Korean leader Kim Jong-il, right, worry top diplomats with nuclear ambitions and hardliner foreign relations. (Majid/Getty Images)

This also shows that over the years that there has been inadequate attention to the implementation of programs that the Security Council or the General Assembly creates. That's why in our search for a new secretary-general we have stressed what the language of the UN Charter itself says, that the secretary-general is the "chief administrative officer" of the organization. Now obviously the role of secretary-general has a big political component, and nobody denies that. Our concern was to search for a candidate who would take these reform issues seriously. We think that in Ban Ki-moon we have found such a person. We look forward to working with him, supporting him and his reform efforts, which he has appropriately made a major priority.

Now there's a larger question as well for the U.S., and that is the disjunction between voting power in the General Assembly and our share of the assessed contributions—22 percent for the UN's regular budget, which is over a billion dollars a year. The U.S. provides 27 percent of the annual peacekeeping budget, which is over five billion dollars a year. As a member of the General Assembly, we have one out of 192 votes, or roughly 0.5 percent, and yet we're paying 22 percent of the assessed budget. It leaves us in a difficult position. If you calculate the assessments of the other members of the General Assembly and look at the lowest 97 members—I take that number because 97 is a majority of 192—the lowest 97 contributors together amount to 0.3 percent of the total UN budget. You can see the disparity—not that we vote on a lot on budget issues—but this is an inherent problem for us.

Now, some people say the General Assembly is democratic, but of course it's not democratic. One country, one vote is not a democratic principle; a democratic principle is one person, one vote. There may be reasons why we have one country, one vote in the General Assembly, but that is the source of the disparity between voting power and our contribution. The fact is, it's fun to spend other people's money.

We have also noted, over decades, that UN agencies funded by voluntary contributions tend to be much better run and much more effective than agencies funded by assessed contributions. Look at the work of the UN High Commission for Refugees, UNICEF, or the World Food Program. All of these agencies are funded almost exclusively by voluntary contributions. We found that these agencies tend to be very effective, very responsive, and much better managed than their less-accountable counterparts. So one of the things we are looking at is the correlation between voluntary funding and effectiveness. We're wondering whether that lesson shouldn't be applied to some of these agencies that are funded by assessed contributions, like the central UN organization itself. We haven't come to any conclusions on that, but the correlation between high performance and voluntary funding is very striking.

Say a despotic regime strikes oil and finds itself extremely wealthy overnight. Should it be able to use that wealth to affect change at the UN?

I don't think that's really the issue. But I think as the major contributor, the U.S. ought to be able to influence the

AS NORTH KOREA AND IRAN CONTINUE TO PURSUE BOTH NUCLEAR WEAPONS AND BALLISTIC MISSILE DELIVERY SYSTEMS, DIPLOMATIC RESOLUTION WILL BE VERY HARD TO SUSTAIN.

course of events in terms of good budget discipline, sound management practices, prioritizing among a whole range of competing priorities, that sort of thing. A lot more than the organization now does. For example, in September 2005, the heads of government who came together for the World Summit said that we should have a review of all existing UN mandates—assignments given by the General Assembly or the Security Council to the Secretariat—to see which mandates could be eliminated as outdated or unnecessary, or alternatively which mandates could be consolidated or modified for greater efficiency, generally looking at everything that could be done to make the organization more efficient.

First, the Secretariat compiled a list of all the mandates that existed and were currently the subject of Secretariat operations. They found that the Secretariat was operating under about 9,000 mandates. If you have 9,000 priorities, you don't have any priorities. That was part of the problem we identified. In any event, we started into the mandate review process after the 2005 summit, and we are now thirteen or fourteen months into that task, and not one mandate has been eliminated or consolidated. That's a pretty good example of how difficult reform is at the UN. Despite our very large budget contribution, the U.S., Japan—the second largest contributor—and the states of the EU have been unable to make the mandate review work.

(AFP/Getty Images)

North Korea's detonation of a nuclear weapon in early October represents a huge blow to diplomacy as a whole. What went wrong? Whose fault is this? How could have it been prevented? The United States seems relatively powerless in doing much of anything. Are sanctions the answer, and who suffers most with sanctions? What does this mean for Iran and proliferation in general?

The North Korean decision to test a nuclear weapon shows just how isolated they are from the rest of the world. They had no support whatever for it. That's one of the reasons we passed the unanimous UN Security Council Resolution 1718 that imposed very strict sanctions against their nuclear, biological, and chemical weapons programs, as well as their ballistic missile programs. The fact is that we had hoped for some time that China and Russia, which have the greatest influence on North Korea, would persuade them to live up to the commitments that the North Koreans themselves made to dismantle their nuclear weapons program, pledged in the September 2005 Joint Declaration in the Six-Party Talks. North Korea obviously went completely in the opposite direction.

Their actions do constitute a threat to the international non-proliferation system, and I think Iran is watching very carefully what they do. That's why the resolution that we're considering to impose sanctions on Iran is going to be important. We'll also have to see how the Russians and the Chinese react as we try to move that resolution forward. Non-proliferation is a very high priority for us. The President has said that he wants to resolve both the North Korean and Iranian nuclear weapons ambitions peacefully and through diplomatic means. But as North Korea

and Iran continue to pursue the objective of getting both nuclear weapons and ballistic missile delivery systems, this will be very hard to sustain.

But whom do sanctions hurt the most?

The sanctions that were imposed by 1718 really don't affect the citizens of North Korea. They're aimed at the weapons programs, and the prohibition on the sale of luxury goods to North Korea directly targets the leadership. Over the decades, the population of North Korea has been declining, as has the average height and weight of the population, which is remarkable when you think about it.

We put in a prohibition on luxury goods basically to make life more difficult for Kim Jong-il, and we tried to make it harder through the range of sanctions for him to get hard currency through the sale of weapons systems. They also restrict the other things that he does—selling illegal narcotics through diplomatic pouches, counterfeiting American money, and a whole range of other activities, each of which is designed to earn hard currency to support the regime in power and sustain its weapons program.

What are your thoughts on expanding the UNSC? For example, the Bush Administration has come out and advocated Japan's inclusion. Would it further complicate things? What would another or several more permanent members on the UNSC mean?

The United States has supported Japan's becoming a permanent member since the Nixon Administration, and that's because we felt that Japan meets the qualifications that a new permanent member ought to have. It's a very important player in international affairs. It's a significant financial contributor to the UN, second largest after to the U.S. It is very active in the UN system. And I think, therefore, it has met all the tests that one could create as to decide who a new permanent member should be. A number of other countries have vied for permanent member status, but only Japan has met every test.

We have some concerns, for example, that the Security Council could get too large. The larger it is the more difficult it is to be effective. In the 1960s, the membership was expanded from eleven to fifteen. I believe that if we go beyond nineteen or twenty it will be very difficult to function. For example, on almost any issue that arises in the Security Council, every council member feels obliged to speak. Adding more members is more than just an arithmetic increase—it can be exponential in terms of debate.

Undoubtedly, Venezuela President Hugo Chavez's increasing brazenness can be linked to his country's oil wealth. *New York Times* columnist Thomas Friedman claims an inverse correlation exists between the price of oil and the freedom index as measured by Freedom House? Do you feel this is true? What is the UN doing in terms of exploring alternative energy or green technologies?

As far as Thomas Friedman's thesis, I'm not sure if there is an inverse correlation. Oil wealth can give certain governments more power than they should be wielding. For example, Venezuela used its petrodollars to try to get a non-permanent seat over the last year but ultimately lost in their effort. Hugo Chavez has been able to team up with Fidel Castro, who has been struggling without the backing of the Soviet Union over the last fifteen years.

This combination is an issue of real concern for democracies in Latin America, Mexico especially. They resent outside interference. As for research on alternative energies, most of that does not fall under the UN's purview. The UN Environment Program in Nairobi has done some work on this. The G-8 has also taken some great strides in researching alternative energies. Not all policies and global initiatives should be headed by the UN. We need competition on the international stage among international organizations. P

A Call for Reform: Paul Volcker, UN-appointed Chairperson of the UN Oil-For-Food Independent Inquiry Committee, issues the Committee's final report in October 2005. The report pointed to abuses inlcuding bribery and fraud within the program. (Mario Tama/Getty Images)

The UN in Its Third Half-Century

An Interview with Jean Krasno

Conducted by Sam Yellen

Jean Krasno is a Distinguished Fellow of International Security Studies at Yale University and an Associate Research Scholar in the Yale department of Political Science. She was executive director of the Academic Council on the United Nations System from 1998 until 2003 and served as associate director of a Yale University project focused on UN reform which produced in 1995 a report entitled "The United Nations in Its Second Half-Century."

The 2000 UN Millennium Declaration called for access to clean water, sanitation, and clean energy and the eradication of poverty. How has the UN progressed toward achieving these goals?

When Secretary-General Kofi Annan came into office, one of his main goals was what he described as "Giving the United Nations back to the people," and in doing that, what he wanted to address was poverty. The UN has operated in the developing world from the very beginning. No other secretary-general has stated that one of his goals was to address and reduce the issues of poverty. Secretary-General Annan also said that addressing poverty particularly in Africa was one of his main goals as well.

As the year 2000 approached, he used that as a milepost to bring the minds of the member states together to come up with a declaration that would develop norms on the pressing issues of poverty. The Millennium Development goals really fit into the plan he was trying to create from the very beginning.

One of my current projects is organizing Annan's papers for publication. I'm particularly focused on what is role has been, and I'm looking at his speeches and the articles he wrote near the beginning of his term in 1997 and 1998. I think that very early on he hit the ground running, particularly on this type of issue.

What the members did in the Millennium Development Goals was to pinpoint specific things that were important, meaning access to clean water, reducing the number of people who live on less than $2 per day, access to energy among them. He continued to push these things. Really what the UN has done here is to say that poverty is a global problem and it is the responsibility of the UN to take it on. The other thing they did was to specifically say "to make this norm concrete," asking what we mean by clean water, energy, and all of the other things that are part of the Millennium Development Goals. Then at the World Summit on Sustainable Development two years later, these things were brought up again and further discussed and laid down in more concrete ways. In whole, one can look at these development goals in terms of sustainability. Last year at the 60th anniversary of the UN, Annan brought these issues up again, in developing the Outcome Document, stating how are we going to keep this initiative going forward. But implementing it is another story.

Has it been successful? Has implementing it in a point by point approach has it helped the UN to achieve its goals?

I think to a degree it has. Many of the benchmarks are set to be achieved by the year 2015. But a lot of people are saying now that it's not going to happen, that it's not possible. But if they hadn't set the benchmark, there wouldn't be anything to compare it to. So is there improvement? I think there is improvement, and this effort has mustered the efforts of donor countries and foundations and people like Bill Gates and others who are now setting up funds to deal with some of the issues and health issues that are part of it.

What is the UN doing about the situation in Darfur? Is there a commitment to bringing in peacekeeping troops?

Over the summer, the Security Council

and Iran continue to pursue the objective of getting both nuclear weapons and ballistic missile delivery systems, this will be very hard to sustain.

But whom do sanctions hurt the most?

The sanctions that were imposed by 1718 really don't affect the citizens of North Korea. They're aimed at the weapons programs, and the prohibition on the sale of luxury goods to North Korea directly targets the leadership. Over the decades, the population of North Korea has been declining, as has the average height and weight of the population, which is remarkable when you think about it.

We put in a prohibition on luxury goods basically to make life more difficult for Kim Jong-il, and we tried to make it harder through the range of sanctions for him to get hard currency through the sale of weapons systems. They also restrict the other things that he does—selling illegal narcotics through diplomatic pouches, counterfeiting American money, and a whole range of other activities, each of which is designed to earn hard currency to support the regime in power and sustain its weapons program.

What are your thoughts on expanding the UNSC? For example, the Bush Administration has come out and advocated Japan's inclusion. Would it further complicate things? What would another or several more permanent members on the UNSC mean?

The United States has supported Japan's becoming a permanent member since the Nixon Administration, and that's because we felt that Japan meets the qualifications that a new permanent member ought to have. It's a very important player in international affairs. It's a significant financial contributor to the UN, second largest after to the U.S. It is very active in the UN system. And I think, therefore, it has met all the tests that one could create as to decide who a new permanent member should be. A number of other countries have vied for permanent member status, but only Japan has met every test.

We have some concerns, for example, that the Security Council could get too large. The larger it is the more difficult it is to be effective. In the 1960s, the membership was expanded from eleven to fifteen. I believe that if we go beyond nineteen or twenty it will be very difficult to function. For example, on almost any issue that arises in the Security Council, every council member feels obliged to speak. Adding more members is more than just an arithmetic increase—it can be exponential in terms of debate.

Undoubtedly, Venezuela President Hugo Chavez's increasing brazenness can be linked to his country's oil wealth. *New York Times* columnist Thomas Friedman claims an inverse correlation exists between the price of oil and the freedom index as measured by Freedom House? Do you feel this is true? What is the UN doing in terms of exploring alternative energy or green technologies?

As far as Thomas Friedman's thesis, I'm not sure if there is an inverse correlation. Oil wealth can give certain governments more power than they should be wielding. For example, Venezuela used its petrodollars to try to get a non-permanent seat over the last year but ultimately lost in their effort. Hugo Chavez has been able to team up with Fidel Castro, who has been struggling without the backing of the Soviet Union over the last fifteen years.

This combination is an issue of real concern for democracies in Latin America, Mexico especially. They resent outside interference. As for research on alternative energies, most of that does not fall under the UN's purview. The UN Environment Program in Nairobi has done some work on this. The G-8 has also taken some great strides in researching alternative energies. Not all policies and global initiatives should be headed by the UN. We need competition on the international stage among international organizations.

A Call for Reform: Paul Volcker, UN-appointed Chairperson of the UN Oil-For-Food Independent Inquiry Committee, issues the Committee's final report in October 2005. The report pointed to abuses inlcuding bribery and fraud within the program. (Mario Tama/Getty Images)

The UN in Its Third Half-Century

An Interview with Jean Krasno

Conducted by Sam Yellen

Jean Krasno is a Distinguished Fellow of International Security Studies at Yale University and an Associate Research Scholar in the Yale department of Political Science. She was executive director of the Academic Council on the United Nations System from 1998 until 2003 and served as associate director of a Yale University project focused on UN reform which produced in 1995 a report entitled "The United Nations in Its Second Half-Century."

The 2000 UN Millennium Declaration called for access to clean water, sanitation, and clean energy and the eradication of poverty. How has the UN progressed toward achieving these goals?

When Secretary-General Kofi Annan came into office, one of his main goals was what he described as "Giving the United Nations back to the people," and in doing that, what he wanted to address was poverty. The UN has operated in the developing world from the very beginning. No other secretary-general has stated that one of his goals was to address and reduce the issues of poverty. Secretary-General Annan also said that addressing poverty particularly in Africa was one of his main goals as well.

As the year 2000 approached, he used that as a milepost to bring the minds of the member states together to come up with a declaration that would develop norms on the pressing issues of poverty. The Millennium Development goals really fit into the plan he was trying to create from the very beginning.

One of my current projects is organizing Annan's papers for publication. I'm particularly focused on what is role has been, and I'm looking at his speeches and the articles he wrote near the beginning of his term in 1997 and 1998. I think that very early on he hit the ground running, particularly on this type of issue.

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What is the UN doing about the situation in Darfur? Is there a commitment to bringing in peacekeeping troops?

Over the summer, the Security Council

passed a resolution saying that the UN was ready to send peacekeeping forces to Darfur. Right now there are 7,000 African Union troops in Darfur, and the Security Council was prepared to send in a significant number of UN troops to augment these forces. That would mean that soldiers would come in better resourced, greater in number, and better trained. The African Union troops are very poorly equipped, have not benefitted from extensive training, and are ultimately incapable of carrying out the task that is set before them. To give a concrete example: They may have some vehicles to patrol the area that they are supposed to be monitoring, there is no gasoline for their vehicles, so they can't go anywhere. These are the kinds of things that make it absolutely impossible for local forces in many areas to operate without UN support.

Troops are deployed by country-contingents, and among the territories assigned to each, only that patrolled by Nigeria is doing well, perhaps because Nigeria one of the more wealthy countries in the region, and also it has been the leader of the ECOWAS peacekeeping operations. The Nigerian forces are well equipped, and they are willing to use force, and so people are afraid of them, meaning that their patrols are actually functional and effective. This shows that peacekeeping forces can work if you have the right materials, the right training, and the will to use force. But you can't have the will to use force if you don't have the capability of fulfilling the mandate.

I was in Washington several weeks ago at a talk the Secretary-General was giving, and there was very little discussion on what might happen in Darfur. What he said might be possible would be that if Sudan would agree, the troops in Sudan would still be African Union personnel, but the UN would provide the resources necessary to build up the AU troops, and that if Sudan would be willing to take in countries from outside Africa, then that might be possible. There was some possibility of perhaps some other peacekeeping contributors, such as Bangladesh or Pakistan, two regular contributors of peacekeeping forces. It looked as though Sudan might agree to take in troops from outside Africa as long as they approved who they were, and there might now be some willingness on their part to take in resources through the UN to build up the AU troops.

Always at Attention: Troops of the French contingent of the United Nations Interim Force in Lebanon (UNIFIL) wait for review in the southern Lebanese village of Naqura in December 2006. Krazno says the mission is charged with a near-impossible task. (Ramzi Haidar/AFP/Getty Images)

Can you comment on UN troops in Lebanon? Are there any lessons learned in the Balkans that we would want to apply to the situation to achieve a better outcome than the last 20 years?

The United Nations Interim Force in Lebanon, or UNIFIL, has been there since 1978, so current operations are essentially a building up and reinforcing of UNIFIL. UNIFIL has had a very difficult mandate because it was asked to come in 1978 after Israel had attacked Lebanon on its southern border because the PLO had been attacking similarly. At that time, President Carter was trying to negotiate the Camp David Accords between Israel and Egypt. The U.S. and the UN wanted to be sure that Israel was behaving itself and wouldn't have the peace talks at Camp David break down. They were very anxious to get forces in there. So basically they put together an impossible agreement to deploy UNIFIL. UNIFIL was supposed to oversee the withdrawal of Israeli troops, which it did, and Israel did at that point withdraw, only later to come back.

UNIFIL was also supposed to secure the southern part of Lebanon and to help Lebanon develop its own mili-

tary to provide that nation with security. Over the years, that never happened because Syria continued to have influence in Lebanon and did not want the Lebanese to have their own strong military. Because Iran and Syria both backed many different factions in southern Lebanon, at one point it was counted that there were some 40 different militia groups there planning to attack Israel. So it was a very difficult situation, and for the UN to survive they simply made informal agreements with all of these different groups, in the spirit of "if you don't attack us, we won't attack you." So the ultimate goal of true security for Lebanon never was achieved because the troop level was low, and they were never given a Chapter 7 robust mandate. If they had, they would have gotten caught in the middle of the fighting, and they didn't want that. So they were trying to pacify everybody in order to allow the Lebanese people to come back to their villages and have a semi-peaceful life. That they did achieve, but the root problem has continued. The PLO was forced out, but then they were replaced by Hezbollah.

This story is now repeating itself. Now the situation is that UNIFIL is supposed to now be strengthened, with more troops led by France and with strong contingents from other European countries. Little by little they have deployed since the ceasefire. The ceasefire has held, but how successful will we really be with that mandate, particularly when it comes to disarming Hezbollah?

Is 1701 a better mandate?

I don't know if it's so much the mandate as it is the situation. It involves so many players—it's not just Israel and Lebanon. Lebanon wants peace, and Israel doesn't have a problem with Lebanon or the Lebanese government, but rather with Hezbollah. And Hezbollah is supported by both Iran and Syria, which allows them to pass weapons through Syria. So the solution is really a political solution. And while the UN troops will be there to safeguard to some degree a ceasefire, it's not an ultimate solution because Hezbollah will not be disarmed. Until Hezbollah is disarmed, Israel will never feel secure, and it will be ready to defend itself in that regard. It's not an ultimate solution, unfortunately. So it's not so much the mandate; it's the situation on the ground. So while we have a ceasefire, the international community has to be much more proactive in getting a multi-party solution to this, which also involves an Israeli-Palestinian solution, so there are a lot of players. It became clear after six weeks of bombing, of trying to hit Hezbollah and disarm them, that there was not going to be a military solution. Israel was not going to be able to completely defeat Hezbollah. Now they have to find a political solution.

Is there a general consensus on Syria and Iran's connection to Hezbollah? It was a large coincidence that the Israeli soldiers were captured on the same day that Iran was to be referred to the Security Council.

A number of people have looked at these coincidences, and certainly Iran has some political control over Hezbollah. But it's unclear as to whether or not it was used as a diversion or whether the leadership of Hezbollah had their own agenda and it was somewhat coincidental with Iran. But certainly it did capture the attention of the world, such that the Security Council could not take up the Iran situation. So did they play into each other. One thing I have heard from people that I know in Lebanon is that Hezbollah has gained tremendously in prestige there, and it's so strange because many more Hezbollah were killed. They didn't do anything to defeat Israel, but just because they survived, which had never happened before. And the ceasefire was drawn out of fear of what might happen next in the international community. They came out with some kind of great victory in their own mind. But the idea does prevail now in the region that somehow Hezbollah won. It's interesting psychologically. The issue now becomes how much power they will gain in Lebanon. They're really pushing their weight around to get more political power in Lebanon as a result of the conflict.

WHEN COUNTRIES REALIZE THAT IT IS IN THEIR SELF-INTEREST TO WORK TOGETHER, THEN WE CAN DO IT, BUT THAT'S A BIG FIRST STEP.

Secretary-General Annan has spent quite a bit of time traveling in the region, meeting with different heads of state to try to come up with a multi-party solution. At least talks are a process by which one could find a solution. The U.S. won't talk to Iran and Syria, so somebody has to talk to them. That's a role the UN could play because the UN is an intergovernmental organization. It has to talk to every country that is a member. It opens an avenue through which the secretary-general can use his offices his role as a mediator to try to bring the parties together and to form some kind of a solution that might

work. I know that behind the scenes that is still ongoing. Something the UN can do is to complement the U.S. in what the U.S. is unwilling to do, which is talk to the parties, and to thereby help bring about what the U.S. wants as an outcome.

How has the U.S. relationship to the UN changed since Ambassador Bolton took office?

When Bolton started that summer before the 60th anniversary, the Millennium Development Goals were being discussed again in order to have an Outcome Document come out on the anniversary. He landed in New York in a very negative way. Over a document which had been pretty ready to go, he started arguing and started taking things out that were really very damaging to the outcome. They were going to water down the strategy on combating poverty. That right away gave him a bad name amongst many people within the UN. Later he backtracked, since he realized very quickly that that kind of attitude was not going to work now that he was a part of a multilateral body and would now have to work multilaterally. And I think he did learn that lesson at that point. His tone definitely softened. The other thing we have to remember is that under the Bush Administration, the position of ambassador to the UN is under the State Department, whereas under President Clinton it was a Cabinet-level position, meaning that the ambassador reported directly to the president. Now Bolton has to report to Condoleezza Rice as secretary of state. Rice wanted the cease fire, and she went to the region and she argued with people. There was a window of opportunity, and she took advantage of it. She came the UN and she butted heads and she made that resolution happen. There is a fabulous picture of her sitting in the Security Council voting on it and Bolton is sitting behind her. Symbolically it is great photograph because she was the one who got people to come together, and he basically had to take a back seat. It's a very interesting dynamic. I don't think he's as terrible as people thought he was going to be, and he has toned it down, but should that be the default position that we have? Maybe we should have someone is a good, strong diplomat who can work with people and who can gain people's confidence and friendship and not just try to adapt someone who is maybe ill-suited to that kind of position.

In the Driver's Seat: Secretary of State Condoleezza Rice votes for UN Resolution 1701 to halt the fighting in Lebanon as U.S Ambassador to the UN John Bolton looks on. Krasno believes that Secretary Rice has been more effective than Ambassador Bolton in gaining the confidence of other nations. (Stephen Chernin/Getty Images)

What kind of role does the UN see for itself in Iraq? What was the effect of the attack on the UN office in Iraq?

The attack on the UN office in Baghdad was absolutely traumatic. The UN had not seen itself as the enemy of Iraq. It had seen itself as a humanitarian entity in Iraq there to help the Iraqi people. And then they were attacked and they became a part of the problem. The UN still runs its office on Iraq, but from Amman, Jordan. One of the things that people don't know much about in terms of the role the UN has been playing in Iraq, partly because the UN doesn't want to talk about it much because they are worried about the safety of their personnel, but they really did most of the ground work on the Iraqi elections. They were the ones who established the roster for voter registration. I interviewed someone there who was in the electoral unit, and UN staff was on the ground, and they were all over Iraq doing all the work to register people to vote, figuring out what system to use to register people because there wasn't really a good census.

The Iraqi censuses were always manipulated to make it look like more Sunnis were present, so the UN workers took one of their own based on ration cards, using the lists of who had signed up for the ration cards in any particular village. They had to go to every village and interview people to find out who had died, who had been born, and who was still on the ration card, and that became the basis for registering to vote. And they helped to monitor and oversee the elections. They also helped the parties to write the constitution. The UN was on the ground doing lots of things, but they really didn't want people to know about it because they were fearful of being targeted so they kept a very low profile. Someday I hope that there will be things written about all of the work that they've been doing. They don't go around advertising who they are; they just do their work very quietly and get it done, and that's that.

Will the UN be able to tackle the problems of North Korea and Iran?

These are very difficult problems because we must ask the pivotal question: Can the Security Council really function on these kinds of issues? The answer is key for the UN and its legitimacy and credibility. The way its structured is you have five permanent members with a veto. If countries are not willing to take global responsibility but are really only protecting their own national interests, like Russia and China on both of these issues, then how well can the UN actually function on things like sanctions? Those things have to come out of the Security Council.

They were able to get sanctions on North Korea, but how effective those will be is another story. But the way it was written was very clever, I think, in terms of that they urged people to comply with the sanctions so that China and Russia could live with it. But while China has said that it's not going to board ships and monitor whether or not North Korea is selling technology outside the country, Japan is willing to board the ships. Other countries are willing to hold them accountable, so it's kind of a mixed bag. China feels that it has to keep more of a peaceful relationship with North Korea. Maybe that's good, and maybe we need China to do that, and at least they allowed the sanctions to go through.

Iran is another matter because North Korea is so poor that nobody depends on it for anything. But with Iran China does around 10 billion dollars worth of trade, and a very large percentage of its oil comes from Iran, a resource China needs because it's growing so fast. Russia is an interesting player because it has been trying to get a peaceful solution in Iran by offering to enrich uranium outside and to sell it to Iran, and they've been a little more helpful. But in terms of invoking sanctions, there doesn't seem to be a great deal of interest in doing that simply because Russian and China are holding back. It's a problem.

The international community is not saying that Iran cannot enrich nuclear fuel, but only so long as it's enriched for power production and not for weapons. In order to be allowed to do that, Iran must comply with IAEA inspections so that the IAEA can frequently monitor the situation there to be sure that this enriched fuel isn't being diverted into weapons production. As long as they agree to that, it's fine because members of the IAEA have all agreed to help peaceful countries to develop nuclear power. So inspections are the issue.

As they were in Iraq?

Iraq avoided the inspections and duped the IAEA for years. They were developing weapons secretly, and the IAEA never knew. Since Iraq, the IAEA is much savvier and more aggressive, and that's why we're seeing Iran and North Korea moderate to some degree because the IAEA has said that they know those nations are doing something they're not supposed to do. They never would have blown the whistle before, but they were being criticized so heavily on Iraq that they became more aggressive.

What does the future hold for the UN?

What we all have to remember is that the UN is made up of member states. And if the member states have the will to do things and cooperate with each other, then the UN can work. But if they don't have that will and don't work to cooperate, then the UN can't function. Very often the secretary-general is seen as the symbol of the UN and is blamed or made a scapegoat for things that the UN is not willing to do. And that is unfair because the secretary-general has no resources of his own, no army of his own, no money of his own, and he cannot make things happen. The member states provide—or choose not to provide—the troops and the funds that make things happen. He can urge and cajole and use the bully pulpit to embarrass countries into doing things or try to encourage people to have higher moral values and protect human rights and think about security. As long as the member states don't want to do these things, though, it's very difficult for the UN to really follow though.

In my view, it is in every country's national interest to work together because the solutions to the problems we face now are global solutions. If it's terrorism or climate change or health, nobody can live in isolation anymore. When countries realize that it is in their self-interest to work together, then we can do it, but that's a big first step.

The EU at the UN: A Two-Part Harmony

An Interview with Fiona Creed

Conducted by Chris Gombeski

Dr. Fiona Creed is a visiting scholar at the MacMillan Center for International and Area Studies at Yale University with a primary research interest in the European Union's foreign policy coordination at the UN. She is part of the European Union Studies Program and European Studies Council at Yale.

You've written much on the "two-part harmony" between the European Union and the United Nations. What is the two-part harmony and what does it mean in terms of relations between the two organizations?

The two-part harmony would basically be anything on economics and trade. When I say "two-part harmony," I mean how the EU creates harmony within itself and then is in harmony with the UN and other member-states at the UN. It is much stronger, generally speaking, in unison, than if it is diverse in opinion and varied in its capacity. Some EU countries think that the EU is a political entity, others an economic entity, and some member-states say both. This gives you an idea of how sometimes the EU reaches consensus on an issue, and sometimes they don't. And some countries you would think are like-minded aren't actually like-minded at all. Sometimes when it does reach consensus, it has been referred to as a "lowest common denominator" syndrome, where member-states spend so long trying to reach consensus that the actual position they come out with isn't much good. It's so watered-down because they had to send it through twenty-five member-states for approval. Every member-state wants to have its say, and will try to add its own paragraph to a resolution before the European Council. But if they're going to agree with everything, what's the point? Of course, at the UN, if you have a twenty-five member-bloc in agreement, it can be quite influential.

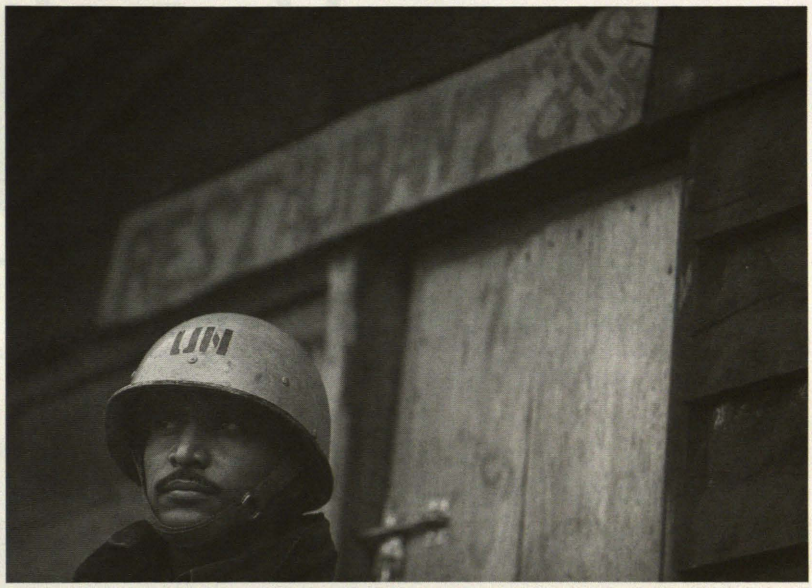
Does the EU, in attempting to manufacture and enforce consensus among its member-states, often handicap itself before the United Nations?

It does. This prevents the EU from being more effective. In my experience, when I talked to non-EU member-states, they said the EU is far more effective with twenty-five voices than it is with one. This is the biggest misconception at the EU. It's missing out so on many opportunities, including the chance for bilaterals—agreements and talks between two states—because it is spending so much time in the corner trying to reach a common position. And I suppose there are frustrations that the EU comes out with a very weak proposal at the end of the day. The member-states of the EU are so locked into their own coordination procedures and the intensity of it that they are missing out on the possibility of bringing other UN member-states on board.

You have described the United Nations as both a means of world governance and, alternatively, as a "Tower of Babel." Along which lines does the UN fall?

I think that the UN is a very important organization, and that it is critical that there is a forum for countries around the world to seek common goals. Having had the opportunity to be there for a year, I definitely saw the benefit of it. But so far as getting people to talk, because that's all that gets done, I also found that little might be resolved for the first two to three weeks of discussion of an issue—I mean a minimal amount of work done—and then there will be much attention given right before the deadline when agreement has to be reached. I just found that part very frustrating. I guess I would say it is more "Tower of Babel" than world governance in many respects. And there exists an aw-

ful lot of marginalization, outside of the key players, in situations where everybody hangs around to hear the larger nations speak, but as soon as the smaller states' representatives take the podium, everyone goes out for coffee. They say, "One country, one vote," but that may be very different from the way countries are treated. I had spoken to a former EU. diplomat who basically said he definitely knew it was time to retire when he went to a meeting over a public-health program that become a four-hour debate over the placement of a comma in a resolution.



Better Late than Never? UN peacekeeping troops are used more extensively than ever before but often arrive on the scene too late to prevent widespread violence. For the UN forces to be credible, "they have to act quickly and decisively," says Dr. Creed. (AFP/Getty Images)

Many critics of the UN have pointed to a fundamental imbalance in the way member-states pay dues. The ten wealthiest member-states pay over 80 percent of its budget but command only the same 10 votes in the General Assembly. On the other hand, the poorest members—those with the least capacity to pay—contribute only 18 percent but command 176 votes. Is there anything to be done about this imbalance, and is there a way to placate these wealthy member-states who are concerned that they are paying for programs they oppose?

I feel that if you earn more, if you are a wealthier country, then you should pay more. I think that's only right. If you want to be part of the organization, then that's what you've signed up for. I think there's a lot more that is in need of revision than the way the contributions are distributed. The United States—obviously a major contributor—has in certain situations withheld payments, and people may think that that only has an effect in one committee or in certain areas, but it actually has a knockdown, widespread effect. And other nations become very frustrated at the double standard being applied. Obviously there are some states that feel entitled to have more of a say—Germany for instance—but I think it is currently a good system.

Growing Pains: Ambassador Bolton votes for the Latin American Group seat on the Security Council in October 2006. Despite calls for the expansion of the Security Council, Dr. Creed warns that the "enlargement process might not go as smoothly" as many think. (Stephen Chernin/Getty Images)

The UN Security Council was originally intended to be a "dispute resolution mechanism" but instead has devolved into a kind of battlefield, as you have described. Can the problems plaguing the Security Council be resolved?

It would take an awful lot of work for it to become a "dispute resolution mechanism" again, because we are again looking at a lowest common denominator scenario. There is this whole drive to enlarge the Security Council and make it more representative. I think it's quite interesting that there's been such interest in it and such a push to

A Heavy Burden: The UN has always aspired to be a truly representative body in endorsing the philosophy of "one country, one vote." But, in reality, "there exists an awful lot of marginalization," Dr. Creed says. "As soon as the smaller states' representatives take the podium, everyone goes out for coffee." (AFP/Getty Images)

do it. In the same way, if you compare it to the EU, and how enlargement happened there, an enlarged body makes business so much more difficult. It's difficult enough to coordinate fifteen member-states as it is—the ten elected members and five permanent members. And then you start adding more members. I think the structure of the Security Council has to be changed before new members are admitted. You know, should there be regional representation? How should votes be counted? And the Security Council issue has been overshadowed by the reform process or the lack thereof. The reform process of the Security Council is something that seems to rear its ugly head every eight-to-ten years. Then it dies down again, and there's a big swell again. Fixing it is gonna be an awful lot of work, and I can't even offer an alternative, but I think the enlargement process may not go as smoothly as some think, and I would look at the EU as an example of that.

Could the EU be facing a "saturation point" with it membership, beyond which its collective action problems would be too hard to reconcile? Has the EU already become too diluted by adding more members, or is that prospect still far off?

I think that EU membership still has its core benefits. On the humanitarian side of things, it is still a very strong player with the twenty-five members it has. It still takes much effort to coordinate twenty-five members. Often, with newly admitted states outside the original fifteen, they are very interested in the issues that come up, but they aren't that vocal in registering their opinions. Some of this actually has to do with the language barrier. Many of the Eastern European countries can speak English but not French, which the French representatives most often use. There are a number of difficulties like this, but this is one of the biggest debates about the enlargement process. When some say that we can't accept anymore members, that we've reached this saturation point, that would mean we can't cope with the number that we have. I do think that when you require consensus of so many diverse nations, you will always get a diluted opinion, unless, of course, you look at the EU on matters of economics. The results are pretty good, and largely with human rights issues, as well, though there is some disagreement on this matter. The EU has always been fairly cohesive on these matters.

There has been a six-fold the increase in exercise of UN preventive diplomacy, a four-fold increase in UN peacekeeping operations, and an eleven-fold increase in the use of sanctions since the end of the Cold War. But at the same time, the UN has been relatively ineffective in stopping bloodshed in the conflicts in Sudan and Rwanda. Does the UN have the capacity for these kinds of major peace operations?

I think it has the capacity for it; I just think execution has been the problem—for a number of reasons—bureaucracy, among them. UN peacekeeping forces can be extremely effective and are a very welcome sight, but I think the execution has been a major problem and has kept them from having a major impact. Much of what they've done has been too little, too late. Often they are there picking up the pieces after the main work has been done. And maybe that's good, too, but for them to be credible forces they have to act quickly and decisively. It's the same thing with the EU, with this idea of a rapid reaction force, that has the ability to be deployed in a number of hours. That has been a bit of a disaster, too.

A View from the Inside

An Interview with Linda Fasulo

Conducted by Matthew Ellison

Linda Fasulo is the United Nations Correspondent for NBC News and MSNBC.com and a frequent contributor to National Public Radio. She also has served as Special UN Correspondent for *U.S. News & World Report* and recently published a book, *The Insider's Guide to the UN.*

In your years covering the United Nations, what changes have you observed?

I think the UN has gone through a pretty interesting period. I started covering the UN in 1990 about the time that Saddam Hussein invaded Kuwait and the Persian Gulf War became one of the most important issues particularly for the UN Security Council and in America's embrace of the UN. Even today, more than fifteen years later, we're still dealing with the aftermath of Saddam's regime. And so I think that's been the single biggest issue for me personally in covering the UN.

I think that the UN has changed dramatically over the past decade and a half because the world has changed. In the 1990s, with the emergence of the U.S. as the single dominant superpower, we were at the beginning of what was thought would be a new world order. There have been dramatic changes since 9/11; the world is very much concerned with combating international terrorism and the proliferation of weapons of mass destruction.

During this time there also has been an increasing focus on promoting human rights around the world and the responsibility of the international community to deal with atrocities and abuses within borders, versus the previous role of the UN to deal with conflicts between nations. Now many conflicts are within nations, and the international community has been able to play a larger role, albeit not necessarily the most effective role in every place, but that discussion about safeguarding human rights and about trying to hold abusers to account has evolved very much over the past decade.

One of the issues that has long been a topic of discussion when talking about reform of the UN has been the permanent members of the Security Council. Brazil, Germany, India, and Japan have all made their cases for permanent seats, and various changes have been proposed. Do you see any major changes on the Security Council taking place in the near future?

In the corridors of the UN, the question is, "In whose lifetime will we see changes in the Security Council?" There have been many proposals. A number of countries would like to have permanents seats on the Council. The UN now has 192 members, and the reality is that to increase the size of the Security Council, you need the approval of the various regional blocs, whether it's Latin America, Asia, Western Europe, or Africa.

Historically, the respective groups have not been able to agree on which members within their group should have any long-term role on the Council. For example, in Africa, it's been mentioned that Egypt, South Africa, and Nigeria would like to have permanent seats on the Council, but it's not clear that their next-door neighbors or competitors would like that. In Latin America, Brazil and Argentina have voiced interest in permanent seats, but if you talk to Mexican diplomats, it's clear that Mexico does not want to see those two countries have permanent seats to the exclusion of itself. So I think there are a lot of complications and rivalries that have to be worked out before the Council's permanent membership will change. At this point, it doesn't look like it's going to happen any time soon.

There have been instances where the UN has been highly ineffective in preventing humanitarian tragedies in the world. Little action was taken to resolve the Rwandan genocide, the Second

Congo War, the Srebrenica massacre, and the starvation in Somalia in 1993. Now, it seems to be happening again in Darfur. Do you see any reforms being implemented to increase the organization's ability to react to situations before they become tragedies?

Nothing dramatic. Right now, for example, there are numerous countries that would like to see the United Nations playing a larger role in Darfur. And in fact on August 31, 2006, the Security Council authorized a yet-to-be-deployed 20,000-strong peacekeeping force. The problem is largely Sudan. The Khartoum government is still refusing to allow UN peacekeepers into Darfur, and the nations that are willing to donate troops do not want to send in their troops with guns ablaze. They want the permission of the host government. Historically, that's how most UN peacekeeping operations have operated, with the consent of the government involved. Unfortunately, the situation in Darfur does show how restricted the United Nations is in terms of dealing with a crisis like this.

IN THE CORRIDORS OF THE UN, THE QUESTION IS, "IN WHOSE LIFETIME WILL WE SEE CHANGES IN THE SECURITY COUNCIL?"

The UN passed a resolution to send 20,000 troops to Darfur, but objections from the Sudanese government have prevented the troops from actually being sent. In 2004, Resolution 1559 called for the disarming of Hezbollah, but that has not happened either. Is there a process whereby the UN can enforce the resolutions it passes?

The challenge of every UN Security Council Resolution is its enforcement. Only in rare instances can you force countries to implement these resolutions. The Council can impose sanctions, and in extreme circumstances, authorize military force, but the reality is that Council members are reluctant to launch military enforcement actions against member states except on rare occasions. So far, UN member states, including the U.S. and the European Union, are not talking about invading Darfur to deal with the crisis. In any case, it seems highly unlikely that Council members such as veto-wielding China and Russia would allow the Security Council to give its blessing to such an operation in light of their trade relations with Sudan. On Resolution 1559, which was adopted two years ago, again no one's going to go into Lebanon to forcibly disarm Hezbollah. That indeed is the limitation. That being said, it doesn't mean that these resolutions are not at all useful. The problem is that in these crises, there is no fast solution, no good answer to a lot of them other than keeping the pressure on and trying to use whatever leverage nations can use—unilateral as well as multilateral ways of putting pressure on governments that are refusing to comply with Council resolutions.

In 2003 the U.S. essentially bypassed an unfriendly Security Council and invaded Iraq. How did this defiance of the Council by its most powerful member affect the Council's credibility?

I think that there's a difference of opinion in terms of whether or not the United States defied the Security Council. The United States believes that it was authorized under previous resolutions to go into Iraq. There's no doubt that the U.S.-led coalition that did go into Iraq caused a lot of division here at the United Nations. And a number of America's closest allies were at loggerheads. Since that time, however, nation-states and Security Council members have come together—although there are still some tensions—and dealt with a lot of other important issues. So on one hand, it was very problematic between America and some of its closest allies and others, but the reality is the Security Council did not stand still after the U.S.-led invasion of Iraq. In fact, the U.S., France, and others quickly began to work together regarding authorizing a whole range of peacekeeping operations primarily in Africa, such as Liberia and the Ivory Coast, as well as in Haiti. It was a very divisive moment, but it did not paralyze. As you know, people were talking about the irrelevance of the UN at that point. There were concerns that it could really become a dinosaur. I don't think that that has happened. To the contrary, I think that there's a lot of interest now in trying to deal with an even wider range of issues including the proliferation of weapons of mass destruction. The UN is a complicated organization that has had managerial and administrative problems as well. But the world is a dangerous place, and many threats have to be dealt with on a global level. Countries recognize that the UN is good at dealing with some issues but not necessarily all issues at all times.

Regarding the current situation in Iraq, is there talk about the UN playing a part in a solution? Or is it considered the U.S.'s problem that we're on our own to solve?

I don't think it's considered only the U.S.'s problem. The UN Security Council has approved the continued presence in Iraq of the U.S.-led coalition force. In fact, the

IT'S NOT EASY TO DRAMATICALLY CHANGE THIS ORGANIZATION BECAUSE EVERYONE HAS A VESTED INTEREST IN PARTS OF IT AND FEW SEEM REALLY READY TO GIVE UP PERKS OR POWER.

Council recently extended UN authorization for the force through the end of 2007, unless Iraq requests a withdrawal sooner. So it's not as if the Security Council has washed its hands of Iraq, although there is not a substantial direct UN role at the moment, since Iraq is a very dangerous place and you don't have a very big UN presence there. However, it is likely that eventually the UN will play a larger, more multifaceted role in Iraq, if the current sectarian and terrorist conflict can be brought under control.

A *New York Times* article last July cited reactions by various UN diplomats to John Bolton. One called him "intransigent and maximalist." Another suggested that his "high ambitions are cover-ups for less noble aims, and oriented not at improving the United Nations, but at belittling and weakening it." In a November 15 Reuters article, on the other hand, Wang Guangya, China's ambassador to the UN, said, "I enjoy working with him," adding, "Professionally he is capable [and] effective." Which of these views of Bolton was predominate among his colleagues? Which view do you agree with?

I think it was very interesting that China's ambassador, when asked by reporters, complimented Ambassador Bolton's professionalism and effectiveness on the Security Council. Three weeks later when Ambassador Bolton submitted his resignation, Ambassador Wang repeated that view, and despite his country's often having policy differences and difficult negotiations on various issues with the U.S., said he regretted that Bolton was leaving. On the Security Council, many diplomats maintain that Bolton effectively represented America's foreign policy interests and played a leading role in securing resolutions regarding the Hezbollah-Israeli conflict, Darfur, and North Korea. Some, though, differed with his alleged tactics at times.

From a journalist's point of view—and perhaps it has to do partly with his training at Yale—he displayed a keen understanding of the issues and was extremely articulate, direct, and definitive about what the U.S. position was on any matter as well as the state-of-play of various Council negotiations. His accessibility and willingness to take questions from reporters after nearly every Council consultation or meeting was very helpful to someone whose job it is to try to keep the public informed about Council developments. One can only hope that his successor will follow suit.

How would you characterize the role of secretary-general? Can the UN be reformed or changed?

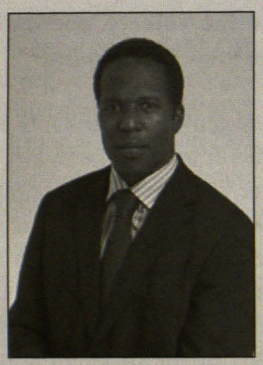
I have to say that being secretary-general is probably one of the most demanding and difficult jobs in the world. It requires a skill set that is very rare. The UN Charter simply defines the role as chief administrative officer and the reality is that he does not have the authority to run the secretariat, the way, for example, the president of the U.S. runs the executive branch or as a CEO of a corporation would run that organization. Part of the problem is that the secretary-general has in essence 192 bosses and that the UN is first and foremost a club of sovereign member states. Of course, it's very difficult to please them all, particularly since there are different kinds of governments, from democracies to dictatorships, and many and varied crises going on in the world at one time. Some people think of it as a no-win type of job in that if the secretary-general is working well with the United States, which obviously is the world's greatest superpower, and other powerful nations, then some small, poorer, less powerful countries are suspect of him and vice versa. So I think it's a type of position where whoever holds it really can't be liked by everyone. But it's a very important job, and I think that Secretary-General Annan has overseen the United Nations over a decade of great change, particularly when you look at what has happened over the past five years since 9/11 and the growing importance of the UN in fighting international terrorism and trying to counter the proliferation of weapons of mass destruction in addition to working to promote social and economic development and human rights and deal with traditional conflicts between countries and civil wars.

It's a very complex world that we're in at the moment. Secretary-General Annan has tried to promote reform of the UN, and of course reform means many things to many people, but it's not easy to dramatically change this organization institutionally or administratively because everyone has a vested interest in parts of it and few seem really ready to give up perks or power. And so I think that we have to look ahead, and Secretary-General Ban is coming in with a full plate of global challenges and issues that have to be dealt with, and he too has pledged to focus on reform. But I don't believe that there are any magic bullets. P

Risky Business

Economic Mobility and the American Worker

By Derek Douglas and James Lin



Derek Douglas (pictured) is Associate Director for Economic Policy and Director of the Economic Mobility Program at the Center for American Progress. **James Lin** is an Economic Policy Intern at the Center for American Progress.

If opinion polls are any guide, the average American worker is of two minds. On the one hand, they have a profound sense of optimism—a feeling that if they work hard and play by the rules they will achieve the American Dream. On the other hand, as the debate about the economy during the 2006 midterm elections clearly showed, Americans also sense that the economic prospects for the average worker are on the decline.

While on the surface these conflicting perspectives may appear to be of little significance, this could have very real consequences for the future. More specifically, one of America's greatest virtues is the optimism of its people. But this optimism, like the American Dream itself, could fade if it is continually left unfulfilled. Thus, if we as a nation do not take steps to start realigning the optimism of America with the economic reality of America, we will be in danger of dampening one of the very things that makes our country so great.

So what is the economic reality of the average American worker today? To be frank, it is quite challenging. There are, however, things we can do to meet the challenges of strengthening and expanding opportunity in America, the driving forces behind the American Dream.

But before getting to the solutions, let's first look at the problems. For the average American worker, the American Dream does not appear to be as real today as it once was. Recent studies on the state of economic mobility in the United States indicate that it is truly the rare few who are able to emerge from low-income status in childhood to become high-income earners in adulthood. According to a Center for American Progress report by Tom Hertz, 42 percent of children born to parents in the bottom income quintile (bottom twenty percent) in 1967 remained at the bottom when they reached adulthood, measured in 2000, and less than six percent of these children made it to the top 20 percent as adults. For children born to parents at the top of the income ladder, the exact opposite was true—42 percent of children born to parents in the top income quintile (top 20 percent) stayed at the top as adults, whereas just six percent of these children fell to the bottom. Most striking, perhaps, was the finding that the chances of getting rich (making it to the top five percent as an adult) are about 22 times higher if you were born rich than if you were born to a low-income family.

This challenge of achieving the American Dream is even more pronounced for minority families. According to the same study, African American children born in the bottom quintile were twice as likely to remain there as adults than white children born to parents of identical incomes. And they were four times less likely to achieve the top quartile income bracket.

These same trends hold both for the general population and for minorities when we look at the question of wealth mobility. In fact, when compared to other OECD nations, the United States ranks lower in intergenerational mobility than France, Germany, Sweden, Canada, Finland, Norway, and Denmark, and higher only than in the United Kingdom. Although the above statistics paint an unflattering picture of the state of economic mobility in America, there is reason to believe that the situation may even be a bit worse. More specifically, due to data limitations, the most recent mobility studies can only evaluate the level of economic mobility through the year 2000. However,

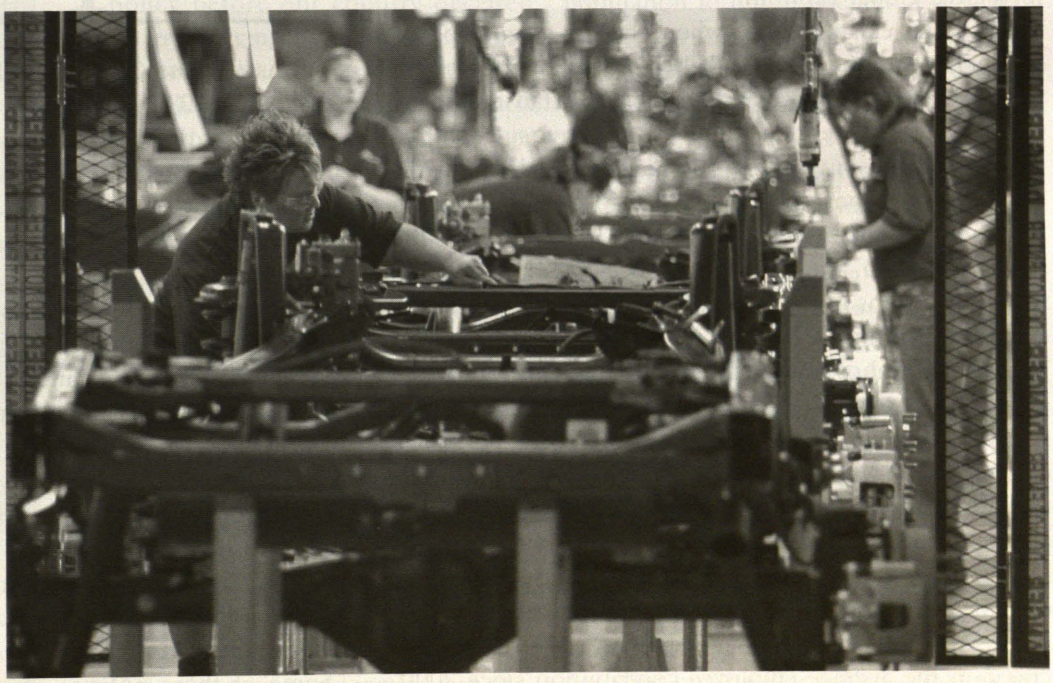
the dramatic rise in inequality over the past six years suggests that climbing the economic ladder has been made more difficult.

One way of modeling this relationship between mobility and inequality is to think of the proverbial "economic ladder." Here inequality is the space between each rung, and mobility is the ease in moving from one rung to the next. A greater degree of inequality increases the space between each rung and thus makes it more difficult to climb the economic ladder.

For the average American worker we have seen the rungs grow increasingly distant over the past few years. According to the most recent Census Bureau data, in 2005, households in the top twenty percent of the income distribution held 50.4 percent of total income in the United States—the largest share on record. By contrast, the bottom forty percent captured just 12 percent of total income. Most troubling, perhaps, is that inequality hit these record levels during a steady period of GDP growth. From the start of the recovery at the end of 2001 through 2005, GDP grew about three percent per year. Yet the benefits of this growth did not "trickle down" to the average American worker. Instead, the lion's share of this economic growth went to those at the top. In 2005 alone, CEOs of major corporations earned an annual compensation that was 279 times greater than that of their average worker. This figure stands in comparison to 71 times in 1990 and 35 times in 1980.

While some may dismiss the "doom and gloom" story of declining economic mobility and increasing inequality as not being relevant to the everyday lives of average American workers, an examination of these "everyday lives" does not lend any comfort. American workers today face a precarious set of circumstances that not only hampers upward mobility but even threatens their own economic security and hard-earned position in America's middle class. Among these circumstances are stagnant wages, a mismatch in labor, and rising prices for basic goods and services.

On the wage side, the story is quite straightforward. From 2000 to 2004, median household income failed to increase for five consecutive years—the only five-year period of wage stagnation since data collection began in 1967. Although median household income finally ticked up in 2005, real median earnings in that year for full-time, year-round workers declined for both men and women—by 1.8 percent and 1.3 percent respectively. For men, median earnings fell for the second straight year by almost $1,000, from $42,160 in 2004 to $41,386 in 2005, its lowest level since 1997. For women, earnings declined for the third straight year, from $32,285 to $31,858, its lowest level since 2000.



Off of the Assembly Line: Auto workers like these in an Ohio Daimler-Chrslyer factory faced a hard year in 2006. U.S. car companies made drastic layoffs as they attempted to adjust to foreign competition. (Bill Pugliano/Getty Images)

The growing mismatch in labor has also created new

FOR THE AVERAGE AMERICAN WORKER, THE AMERICAN DREAM DOES NOT APPEAR TO BE AS REAL TODAY AS IT ONCE WAS.

challenges for the average American worker. This labor mismatch can be understood in both an occupational and a spatial sense. The former occurs when the labor force does not provide enough workers of a specific skill set or knowledge base to work in certain sectors of the economy. This is especially true in the information technology and health care sectors. Unable to produce the demanded number of qualified IT professionals and nurses, the American economy today faces the double-edged sword of unfilled jobs and workers whose skill sets are slowly becoming archaic in a highly fluid and transformative global economy.

The latter exists in cases where there is a geographical distancing of labor markets. While most jobs had heretofore been concentrated within metropolitan areas and peoples' places of residence, job patterns have since shifted toward the outskirts of cities and suburbs, limiting the scope of job opportunities once afforded to both urban and rural communities alike. Thus in both senses of the labor mismatch, the paths that once firmly connected many Americans to their economic livelihoods have been significantly limited.

While the labor mismatch and its implications for the average American worker may not be well known, the radical run-up in prices over the past several years has certainly been felt by all. What has made the run-up particularly difficult is that price increases have been most pronounced for items that are essential to the American Dream—health care, higher education, and housing. Workers now are paying $1,094 more in annual healthcare premiums than just five years ago. This is a 143 percent increase in the average employee contribution since 2000. And this is not the only place where there have been cutbacks: 2005 was the fifth year in a row in which the number of uninsured Americans increased, hitting a record 46.6 million people in 2005.

Higher education costs have also spun out of control. For the past forty years, average college tuition rates have substantially outpaced overall inflation rates by 2.5 to 3.5 percentage points. The cumulative result has been a 474 percent increase in average tuition costs at private universities between the years 1970 and 1990. In comparison, inflation rates in that same period of time have risen by only half that rate, or 248 percent. Cuts in federal aid programs such as Pell Grants have only served to exacerbate the strain on low and middle income families. The same story could be told for housing, which, with the housing boom and potential bursting of the housing bubble, has been well documented.

The net effect of these "everyday" circumstances has been to put the average American worker in an economic "squeeze." To alleviate this pressure, American workers have turned to borrowing at record levels to make ends meet. As of June 2006, household debt rose to an unprecedented 129.3 percent of disposable income. As a percentage of disposable income, debt payments and financial obligations in the second quarter of 2006 grew to a record high of 14.4 percent—a 1.1 percent increase since 2000. In short, Americans now have less to spend and more debt to pay.

THIS CHALLENGE OF ACHIEVING THE AMERICAN DREAM IS EVEN MORE PRONOUNCED FOR MINORITY FAMILIES.

Admittedly, this discussion paints a dim picture of the economic state of the American worker. But a nation's challenge can also be a nation's opportunity. So what can be done to increase opportunity for the average American worker? The answer lies in the problems themselves. We know that the key levers to upward economic mobility are income, wealth (e.g., housing), higher education, and health. Thus, to restore the American Dream for millions of Americans, we can pursue policies that raise incomes, build wealth, and provide affordable access to higher education and health care.

Some of these policies are already well established, whereas others need further exploration. For example, measures to re-index the federal minimum wage have provided optimistic results. In the 2006 midterm elections, every state minimum wage ballot initiative passed—a stunning mandate which indicated that more should be done to preserve at the very least a base-line guarantee of income for working Americans. To help Americans build wealth, policies to promote home ownership, child savings accounts, and retirement security (e.g., universal 401k plans) should be more heavily emphasized. The higher education system needs to be updated to deal with the new global economic realities, and we need to improve access to quality and affordable health care—such as through universal health insurance—to provide economic security to families. Pursing policies like these will help to ensure that the opportunities for moving up the economic ladder—and staying up—are accessible to all Americans. The American people certainly have the belief and optimism that the American Dream is possible; the challenge however, is to make that dream a reality.

The War at Home

Is the War on Drugs Worse Than the Drugs Themselves?

By Sanho Tree

Sanho Tree is a fellow at the Drug Policy Project of the Institute for Policy Studies in Washington, D.C.

In 1965, Sen. Robert F. Kennedy tried to promote an enlightened drug policy before our country declared war on its own citizens. He told Congress, "Now, more than at any other time in our history, the addict is a product of a society which has moved faster and further than it has allowed him to go, a society which in its complexity and its increasing material comfort has left him behind. In taking up the use of drugs the addict is merely exhibiting the outermost aspects of a deep-seated alienation from this society, of a combination of personal problems having both psychological and sociological aspects."

Kennedy continued, "The fact that addiction is bound up with the hard core of the worst problems confronting us socially makes it discouraging at the outset to talk about 'solving' it. 'Solving' it really means solving poverty and broken homes, racial discrimination and inadequate education, slums and unemployment." Thirty-eight years later, the preconditions contributing to drug addiction have changed little, but our response to the problem has become overwhelmingly punitive.

When confronted with illegal behavior, legislators have traditionally responded by escalating law enforcement. Yet countries such as Iran and China that routinely use the death penalty for drug offenses still have serious drug problems. Clearly there are limits to what can be achieved through coercion. By treating this as a criminal justice problem, our range of solutions has been sharply limited: How much coercion do we need to make this problem go away? No country has yet found that level of repression, and it is unlikely many Americans would want to live in a society that did.

As the drug war escalated in the 1980s, mandatory minimum sentencing and other draconian penalties boosted our prison population to unprecedented levels. With more than 2 million of its residents behind bars, the United States—with one-twenty-second of the world's population—has one-quarter of the planet's prisoners. We operate the largest penal system in the world, and approximately one quarter of all our prisoners—nearly half a million people—are there for nonviolent drug offenses. That's more drug prisoners than the entire European Union incarcerates for all offenses combined, and the EU has over 90 million more citizens than the United States. Put another way, the United States now has more nonviolent drug prisoners alone than we had in our entire prison population in 1980.

If the drug war were evaluated like most other government programs, we would have tried different strategies long ago. But our current policy seems to follow its own unique budgetary logic. A slight decline in drug use is used as evidence that our drug war is finally starting to work and therefore we should ramp up funding. But a rise in drug use becomes proof that we are not doing enough to fight drugs and must therefore redouble our efforts and really increase funding. Under this unsustainable dynamic, funding and incarceration rates can only ratchet upward. When President Nixon won reelection in 1972, the annual federal drug war budget was approximately $100 million. Now it is approaching $20 billion. Our legislators have been paralyzed by the doctrine of "if at first you don't succeed, escalate."

Internationally, our drug war has done little more than push drug cultivation from one region to the next while drugs on our streets have become cheaper, purer, and more plentiful than ever. Meanwhile, the

so-called collateral damage from our international drug war has caused incalculable suffering to peasant farmers caught between the crossfire of our eradication policies and the absolute lack of economic alternatives that force them to grow illicit drug crops to feed their families. Unable to control our own domestic demand, our politicians have lashed out at other peoples for daring to feed our seemingly insatiable craving for these substances. We have exported our failures and scapegoated others.

"It's the Economy, Stupid"

Many legislators approve increased drug war funding because they are true believers that cracking down is the only way to deal with unlawful conduct. Others support it out of ignorance that alternative paradigms exist. But perhaps most go along with the drug war for fear of being depicted as "soft on drugs" in negative campaign ads at election time.

In recent years, there has been an increasingly lively debate on whether nonviolent drug offenders should receive treatment or incarceration. As legislators gradually drift toward funding more badly needed treatment slots, an important dynamic of the drug economy is still left out of the national debate: the economics of prohibition. Elected officials and much of the media have been loath to discuss this phenomenon at the risk of being discredited as a "legalizer," but until a solution is found concerning this central issue, many of the societal problems concerning illicit drugs will continue to plague us. Trying to find a sustainable solution to manage the drug problem without discussing the consequences of prohibition is like taking one's car to the mechanic for repair but not allowing the hood to be opened. The time has come to take a look under the hood of our unwinnable drug war.

Under a prohibition economy where there is high demand, escalating law enforcement often produces the opposite of the intended result. By attempting to constrict supply while demand remains high, our policies have made these relatively worthless commodities into substances of tremendous value. The alchemists of the Middle Ages tried in vain for centuries to find a formula to turn lead into gold, but it took our drug warriors to perfect the new alchemy of turning worthless weeds into virtual gold. Some varieties of the most widely used illicit drug, marijuana, are now worth their weight in solid gold (around $350 per ounce). Cocaine and heroin are worth many, many times their equivalent weight in gold. In a world filled with tremendous poverty, greed, and desire, we cannot make these substances disappear by making them more valuable.

Another factor we have failed to take into account is the virtually inexhaustible reservoir of impoverished peasants who will risk growing these crops in the vast regions of the world where these plants can flourish. According to the UN Development Program and the World Bank, there are 1.2 billion people in the world who live on less than $1 a day. Imagine paying for housing, food, clothing, education, transportation, fertilizer, and medicine on less than $1 a day. Now imagine the temptation of putting a worthless seed into the soil and coming up with an illicit crop that can mean the difference between slow starvation and simply poverty for you and your family. We cannot escalate the value of such commodities through prohibition and not expect desperately poor farmers to plant any crop necessary to ensure their survival.

A "Harm Reduction" Approach

Of all the laws that Congress can pass or repeal, the law of supply and demand is not one of them. Neither is the law of evolution nor the law of unintended consequences. The drug trade evolves under Darwinian principles—survival of the fittest. Our response of increasing law enforcement ensures that the clumsy and inefficient traffickers are weeded out while the smarter and more adaptable ones tend to escape. We cannot hope to win a war on drugs when our policies see to it that only the most efficient drug operations survive. Indeed, these survivors are richly rewarded because we have constricted just enough supply to increase prices and profits while "thinning out the herd" by eliminating their competition for them. Through this process of artificial selection, we have been unintentionally breeding "super traffickers" for decades. Our policy of attacking the weakest links has caused tremendous human suffering, wasted countless lives and resources, and produced highly evolved criminal operations.

Our policy of applying a "war" paradigm to fight drug abuse and addiction betrays a gross ignorance of the dimensions of this medical problem and its far-reaching social and economic consequences. Wars employ brute force to extract political concessions from rational state actors. Drugs are articles of commerce that do not respond to fear, pain, or congressional dictates. However, around these crops revolve hundreds of thousands, indeed millions, of individuals responding to the artificially inflated value of these essentially worthless agricultural products. For every trafficker that our "war" manages to stop, a dozen others take his or her place because individuals—whether acting out of poverty, greed, or addiction—enter the drug economy on the assumption they won't get caught, and most never are. No "war" can elicit a unified political capitulation from actors in such diverse places as Southeast Asia, the Andes, suburbia, and the local street corner. Such a war can never be won, but a "harm reduction" approach offers ways to contain and manage the problem.

Guns and helicopters cannot solve the problems of poverty in the Andes or addiction in the United States. Moreover, our policies of employing more police, prosecutors, and prisons to deal with the drug problem is like digging more graves to solve the global AIDS pandemic—it solves nothing. As sociologist Craig Reinarman notes, our policies attack the symptoms but do little to address the underlying problems. "Drugs are richly functional scapegoats," Reinarman writes. "They provide elites with fig leafs to place over the unsightly social ills that are endemic to the social system over which they preside. They provide the public with a restricted aperture of attribution in which only the chemical bogey man or lone deviant come into view and the social causes of a cornucopia of complex problems are out of the picture."

Losing the War: Despite the United States' three-decade-long "war on drugs," illegal substances continue to be found on street corners across the nation. There is an increased call for the U.S. to approach its drug problem from a medical, as opposed to criminal, perspective. (H. Armstrong Roberts/Getty Images)

Until we provide adequate resources for drug treatment, rehabilitation, and prevention, the United States will continue to consume billions of dollars worth of drugs and impoverished peasants around the world will continue to grow them. The enemy is not an illicit agricultural product that can be grown all over the world; rather, our policies should be directed against poverty, despair, and alienation. At home and abroad, these factors drive the demand for illicit drugs which is satisfied by an inexhaustible reservoir of impoverished peasant farmers who have few other economic options with which to sustain themselves and their families.

Some day there will be a just peace in Colombia and a humane drug control policy in the United States. Until then, we are mortgaging the future, and the most powerless among us must pay most of the interest. That interest can be seen in the faces of the campesinos and indigenous peoples caught in the crossfire of our Andean drug war; it can be seen in the millions of addicts in the United States who cannot get treatment they need; it can be seen in the prisons filled with nonviolent drug offenders; and it can be seen in the poverty, despair, and alienation around the world because we choose to squander our resources on harmful programs while ignoring the real needs of the dispossessed.

Because we have witnessed the damage illicit drugs can cause, we have allowed ourselves to fall prey to one of the great myths of the drug warriors: Keeping drugs illegal will protect us. But drug prohibition doesn't mean we control drugs, it means we give up the right to control them. Under prohibition, the people who control drugs are by definition criminals—and, very often, organized crime. We have made a deliberate choice not to regulate these drugs and have been paying the price for the anarchy that followed. These are lessons we failed to learn from our disastrous attempt at alcohol prohibition in the 1920s.

On the other hand, the philosophy of "harm reduction" offers us a way to manage the problem. Briefly put, this means we accept the premise that mind-altering substances have always been part of human society and will not disappear, but we must find ways to minimize the harm caused by these substances while simultaneously minimizing the harm caused by the drug war itself. We have reached the point where the drug war causes more harm than the drugs themselves—which is the definition of a bankrupt policy. Drug abuse and addiction are medical problems, not criminal justice problems, and we should act accordingly.

Some examples of harm reduction include comprehensive and holistic drug treatment for addicts who ask for it, overdose prevention education, clean needle exchange to reduce the spread of HIV and hepatitis, methadone maintenance for heroin addicts, and honest prevention and education programs instead of the ineffective DARE program.

We already know what doesn't work—the current system doesn't work—but we are not allowed to discover what eventually will work. Our current policy of doing more of the same is doomed to failure because escalating a failed paradigm will not produce a different result. However, by approaching the problem as managers rather than moralizers, we can learn from our mistakes and make real progress. It is our current system of the drug war that is the obstacle to finding an eventual workable system of drug control. ■

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What Workers Want

Can Unions Meet Workers' Needs in the Modern Economy?

By James Sherk

James Sherk is a policy analyst at The Heritage Foundation. He works in Heritage's Center for Data Analysis, where he concentrates on researching tax, labor, and economic growth issues.

American unions continued their long decline last year. The AFL–CIO, America's largest labor federation, broke apart, losing three of its four largest member unions and four million members. The proportion of workers who belong to unions remained at levels not seen since the 1930s. Only 12.5 percent of Americans work in unionized jobs, down from 21.4 percent in 1981.

At the heart of this phenomenon is the dramatic decline of private-sector union membership from 19 percent to less than 8 percent in just twenty-five years. The automobile industry, one of the few remaining sectors of the economy with a strong union presence, saw continued financial turmoil and shed tens of thousands of union jobs. Organized labor has clearly lost its way. The question is not whether unions are slipping into irrelevance, but why are they doing so, and what should be done about it.

To many union leaders, the answer is clear: Unions are losing out in America because union busters have become particularly adroit at their trade. To listen to the AFL–CIO, most Americans would like to belong to a union if they could, but when it comes time to vote in an organizing election, they are intimidated by the savvy tactics used by their employers at the suggestion of high-priced consultants.

If the only reason unions are failing is that the organizing elections system is stacked against them, then one might be tempted to conclude that the only thing they need to revive is an overhaul of that system—which appears to be the view of most union leaders. Organized labor's highest legislative priority is an issue you have never heard of: mandatory card-check.

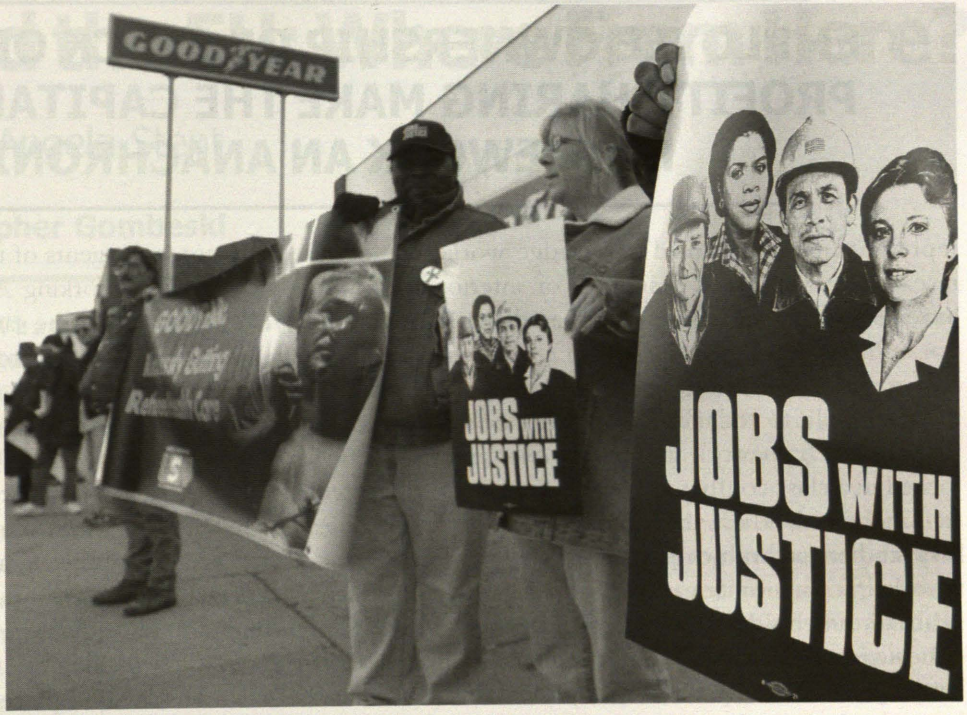
Currently, when unions submit enough authorization cards signed by workers in a company expressing interest in joining a union, the government holds a secret ballot election. Only if a majority of workers choose a union by expressing their views in the privacy and confidentiality of a voting booth are the workers then organized. Unions can skip the election, however, if the company agrees to it. If a union can collect signed authorization cards from a majority of workers in a company, the company can choose to recognize the union as its workers' representative without a formal vote.

A publicly-signed card, however, is not the most reliable gauge of what workers want, especially when the card is signed in the presence of union organizers. Most companies recognize this and insist that the government hold a secret ballot election asking workers whether they actually want to join. Unions now want to pass "mandatory card-check" laws that would abolish these elections and have workers in a company join a union when a majority of them publicly sign cards stating their desire to do so. This law would make it much easier for unions to organize workers.

Depriving workers of democratic elections is a problematic tonic for labor's ills, however. The labor movement exists to fight for workers' rights, not take them away. It is disconcerting to hear union leaders like UNITE-HERE President Bruce Raynor state that "there is no reason to subject the workers to an election." Secret ballot elections are an important democratic right. They ensure that employees can vote without peer pressure or pressure from union organizers. Their confidentiality ensures that workers can vote their conscience free from fear of reprisals from either their employer or the union.

Unfortunately, the behavior of some overzealous union organizers during card-check campaigns demonstrates that workers do need these protections. Workers in Los Angeles had to get a court injunction to stop union organizers from repeatedly harassing them at their homes at night to sign organizing cards. Organizers threatened workers in Las Vegas with the loss of their jobs when the union was recognized if they did not sign. Secret ballot elections prevent workers from being subject to abuse if they do not vote the "right" way.

Beyond the unfairness to workers of making their votes public, there is another problem with unions relying on card-check to revitalize the labor movement: It will not work. Many Canadian provinces have already replaced secret ballot elections with card-check. The Canadian experience suggests that card-check increases the likelihood that an organizing campaign succeeds by 9 percentage points. That is significant, but not nearly enough to do more than merely slow organized labor's long decline.



Disorganized Labor? Union protests, such as this one at a Detroit Goodyear are becoming an ever more rare scene in America today. Only 12.5 percent of Americans work unionized jobs, down from 21.4 percent in 1981. (Bill Pugliano/Getty Images)

Labor's fundamental problem is not that unethical managers pressure their workers into voting against joining a union. It is that most workers do not find unions relevant to their working lives and do not want to join one. In a recent Zogby poll, 74 percent of American workers said that they did not want to belong to a union, while only 20 percent said that they did. Getting rid of elections will not change the fact that the overwhelming majority of workers do not want to belong to a union.

To become relevant to twenty-first century workers, organized labor needs to reform and adapt to the modern economy, not the industrial economy in which unions emerged. Most unions still act as though they were in the 1950s, with only two agents negotiating for their share of the economic pie: management as the agent of capital and investors and organized labor representing individual workers. This framework assumes that employers have monopoly power, that they can offer their workers lifetime employment, and that individual workers do not have unique skills. Consequently, unions tend to work out only in the rare cases where all three conditions exist—an increasingly rare situation in today's economy.

In a globalized and competitive economy, corporations do not have monopoly profits that they can pass on to their workers. About the only place monopoly power remains a reality today is government. Even if companies could guarantee it, American workers no longer expect or desire lifetime employment. The average U.S. college graduate with ten years of experience has held four different jobs since entering the workforce and switches employers to get a raise. Nor can a general contract easily

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EMPLOYEE OWNERSHIP OF STOCK OPTIONS AND PROFIT-SHARING MAKE THE CAPITAL VS. LABOR FRAMEWORK AN ANACHRONISM.

represent uniquely skilled knowledge workers. Medical researchers, web page designers, or interior decorators have very little use for a seniority-based contract that does not reflect their individual skills or talents.

But even if the assumptions behind collective bargaining did apply to today's economy, union's management vs. workers framework would not. Workers do not feel locked in a class conflict with their employers: 70 percent of American workers tell pollsters that their companies respect them and values them as individuals. Beyond that, with half of all American households—including many union households—owning stocks, the workers of America truly do control the means of production. Employee ownership of stock options and profit-sharing make the capital vs. labor framework an anachronism. When unions bargain with management, they now negotiate not with agents of the financial elite, but with representatives of working Americans saving for retirement. They are both on the same side.

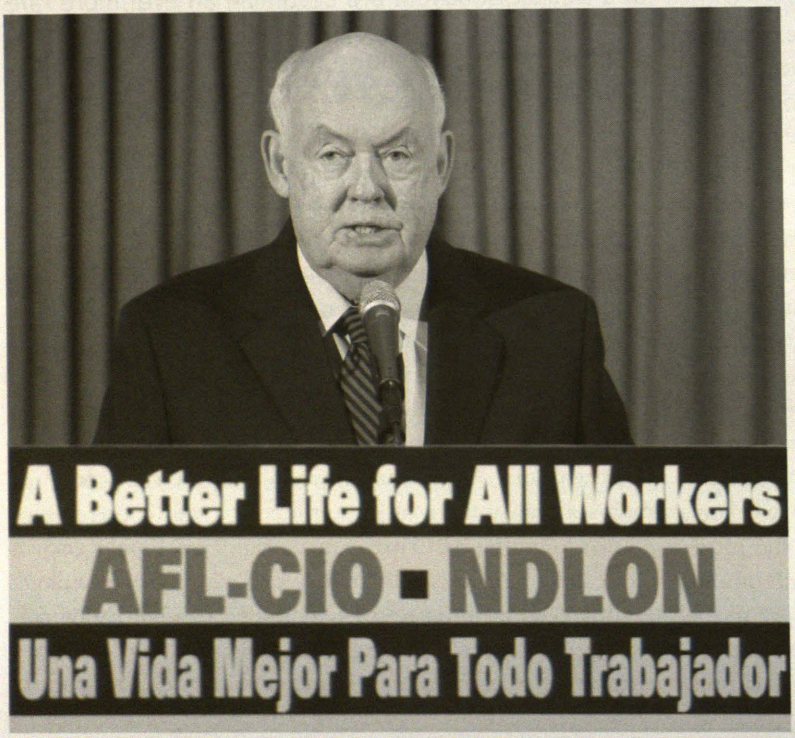
Workers do have problems with their jobs, but they are not the problems that unions offer to solve. By an 82 to 15 percent margin, American workers are satisfied with their job security. Only 9 percent of workers tell pollsters they are afraid that their jobs will be shipped overseas.

What do workers want? Sixty-two percent of workers find excessive bureaucracy to their biggest barrier to job satisfaction, while 60 percent say that flexibility is very important to them at work. When was the last time unions focused on making the workplace more flexible?

Unions can be a powerful voice for empowering workers, but only if they understand that the economy has changed and that they need to reform to meet workers' changing needs. Instead of trying to lock workers into one-size-fits-all contracts, unions would do better to focus on helping workers transition and be heard by management in today's dynamic economy.

For example, most unions oppose defined contribution pension plans, preferring instead (union-managed) defined benefit pensions. But defined benefit pension plans are difficult to switch between employers. In today's increasingly-mobile economy, they make little sense. Instead of advocating for an industrial-age retirement system, unions could support defined contribution plans and advise companies how to structure them to meet their workers' needs. They could also offer members with little long-term savings experience investment planning advice to help them prepare for their retirement. Unions oriented along these lines could make a powerful difference in workers' lives.

Unions can become relevant again, but before they can do so, they need to understand where they have gone off track and how to fix it. Organized labor's problem is not that workers must vote in secret ballot elections before they join a union. It is that most workers do not find unions relevant to their working lives and do not want to join. To succeed in America, unions need to abandon their 1950s class-conflict mindset and focus on how to best serve uniquely-skilled workers in the dynamic modern economy.



Targeting New Constituencies: AFL-CIO President John J. Sweeney announces a partnership with the National Day Laborer Organizing Network (NDLON) said to seek to improve working conditions and wages for illegal immigrants working in the U.S. Such an alliance could be a revitalizing act by big labor that Mr. Sherk says will be imperative if such organizations wish to continue playing a role in the American labor market. (Tim Boyle/Getty Images)

Russia and the EU: Where From Here?

An Interview with Angela Stent

Conducted by Christopher Gombeski

Dr. **Angela Stent** is Professor of Government and Foreign Service and Director of the Center for Eurasian, Russian, and East European Studies at the Georgetown University School of Foreign Service. From 2004 until 2006 she served as the National Intelligence Officer for Russia and Eurasia at the National Intelligence Council.

What will be the future state of Russia's relations with the European Union and NATO as both continue to expand toward Russia's borders and admit former Eastern-bloc nations?

It is not clear to me that either the European Union or NATO will expand eastward any time soon. The EU is suffering from enlargement fatigue. It has 27 members now that Bulgaria and Romania joined in January. It has been much more difficult to absorb the new post-communist countries than originally thought. NATO was originally considering adding new members in 2008. But that unlikely now because both Ukraine has deferred any consideration of NATO membership, and NATO has expressed reservations about the other potential members, such as Georgia and Albania. It's unlikely that we will get further enlargements in the near future. Russia has already expressed its opposition to the addition of former Soviet states to NATO. It would do everything it could to keep that from happening. It would be of less concern to Moscow if the EU expanded, but the EU is not currently considering offering any more former Soviet states membership.

With Iran's pursuit of nuclear weapons and increasing concerns over Iraq's reconstruction, who will Russia find itself siding with more—the United States or Germany?

Russia sided with Germany in opposing the war in Iraq. But it also said that it doesn't think the United States should pull out of Iraq immediately, because it would make things more unstable, which is Germany's positio, as well. On Iran, we will have to see how this develops. Russia has been strongly opposed to the use of sanctions, and there will likely be some sanctions imposed, but probably not ones as robust as Germany and the United States would like.

Russia recently declared that it believes Iran's nuclear program to be peaceful and has expressed misgivings about imposing sanctions on the Middle Eastern nation. Why is Russia so reluctant to punish Tehran?

It believes Tehran is further along from acquiring nuclear weapons than the United States or Germany does. It also has strong commercial interests in Iran. And given that Russia has been dealing with its own Muslim population for centuries, it also looks at Iran differently, because Iran is a neighbor and has potential influence on Russia's own Islamic population. So there's a domestic side to this issue as well.

So far, both Russia and China have balked at measures regarding Iran and North Korea that have included provisions for armed forces because of fears that the regimes will topple, leading to a mass exodus of refugees across their borders. Does Russia have more at stake with this most recent confrontation because of Putin's endorsement of closer relations with Pyongyang? What can it do to return the Far East to normalcy?

Russia is very concerned about North Korea's acquiring nuclear weapons, about its role as a global proliferator and about the possibility of regime collapse. It fears waves of refugees and instability in the region. It doesn't want to have to deal with the consequences. It tends to follow the

Entering with a Bang: A view of the fireworks over Prague's St. Vitus cathedral as thousands of Czechs celebrated their nation's entry to the EU on May 1, 2004. President Vaclav Klaus greeted the occasion by warning Czechs that they risked losing sovereignty and becoming disillusioned in their union with Western Europe, but Dr. Stent believes that the incentive of joining such a body ultimately helps to promote the transition to democracy. (Michal Ruzicka/AFP/Getty Images)

Chinese lead on North Korea. It would be very concerned that a nuclear North Korea would encourage the rise of a nuclear Japan and is concerned about the whole region going nuclear. So it is working with the Chinese to encourage stability.

What does it mean to say that Russia is an "energy superpower," as Russian Defense Minister Sergei Ivanov has said?

President Putin has since denied this, saying that "energy superpower" is a Cold War term. What Ivanov means is that Russia has the world's largest reserves of gas, and that it will be a leading global supplier of both oil and gas. When we in the West use the term, we mean that Russia might use its oil and gas reserves to influence or intimidate its neighbors.

What are the long-term effects of Putin's crackdown on the free press and privately-owned and -broadcast news outlets?

The long-term result is that people have fewer and fewer alternative sources of information. They might be more supportive of government policy because they know less. People near the top may also be less informed, and that is ultimately disadvantageous.

In one paper, you observed, "Public criticism of Russia's domestic system has not produced the results that we would have liked to have seen and therefore the conversation about democracy is best pursued out of the public eye." What can be done through these less-transparent channels?

A more productive way of discussing things is to embark on a dialogue about improving the governance of the country, about building transparent institutions. Under the current leadership, that might be the most effective policy. On the topic of infectious diseases, for example, we've worked with Russia to enable them to come to grips with these issues for their society. So what we have to focus on is not so much the public criticism, but what our interests are and how we can best promote them in conjunction with Russia.

Putin is currently enjoying support from as much as seventy percent of the Russian people, "popularity rates that his G-8 colleagues can only envy," as you have said. What's responsible for his outstanding

IN PAST SUCCESSFUL TRANSITIONS TO DEMOCRACY, THESE COUNTRIES DID IT THEMSELVES, BUT THEY HAD CONCRETE INCENTIVES TO DO SO, WITH THE POSSIBILITY OF JOINING NATO OR THE EU. WE ALSO HAVE TO UNDERSTAND THAT PROCESS OF CHANGE IS A MATTER OF DECADES.

popular support?

Most Russians are better off economically than they were under former President Yeltsin. It appears to them that they have a more stable country now. Russia gets more respect in the world than it had under Yeltsin. Of course, it's also true that the population has only limited information about what is happening in their society. This does contribute toward his high popularity level, but it's also true that Russians like to have a strong leader, and they consider that Putin fulfills that role.

Explosive Tensions: A soldier runs near a burning oil well in the Staropromyslovsky district of Chechnya's main city, Grozny, in November 2006. Oil wells belonging to Russian oil giant Rosneft were blown up in the war-torn province of Chechnya. (Khasan Kaziyev/AFP/Getty Images)

What can American policymakers learn from the attempts at democratization of both Russia in the 1990s following the collapse of the Soviet Union and the removal of Saddam Hussein from Iraq?

First of all, the extent to which you can successfully build a democracy depends on that country's culture and history. Lesson number two is that you can't impose democracy from the outside. If you look at past successful examples of transition to democracy, in the Central European or Baltic states, these countries did it themselves, but they had the incentives to do so, with the possibilities of joining NATO or the European Union. There were concrete incentives, and they had the will to do it. There is also a very long horizon for this. We have to understand that process of change is a matter of decades.

What is the status of border relations between Russia and China?

They finally signed a border treaty, though it took them forty years to negotiate it. The border relationship with China is the best that it has been in a long time, probably in centuries. The main problem is demographic. The Russian population in the Far East is diminishing, and Chinese are moving into the area.

Can Russia diversify its economy and counter its shrinking population in order to remain a global economic force?

It can; the question is, will it? Given Russia's energy revenues and oil prices as they are now, there are fewer incentives to diversify. There is a discussion about that now, with some specialists arguing that they already have begun diversification. But I'd say, in the end, Russia can diversify its economy; it is only a matter of whether it will actually do it.

Former KGB agent Alexander Litvinenko, who died of poisoning on November 23 of last year, was an outspoken critic of the Russian administration and was granted asylum in Britain in 2000 because he alleged he had been persecuted in his native Russia. Some have maintained that Russian authorities are responsible for Litvinenko's "unexplained death," as those investigating have termed it. Is it possible that the Kremlin was behind this?

All of these things are so opaque, it's impossible to know. There were plenty of people who wanted him out of the way. If the British authorities are correct, this poison that was used was not something you can pick up on the street. There are only probably a restricted number of facilities where you could get that kind of poison. But of course, things can be stolen, too. I don't know whether we'll ever know what really happened. ■

From the Warsaw Pact to the EU

An Interview with Tomáš Sedlácek

Conducted by Jeanne Hefez

Tomáš Sedlácek is a lecturer at Charles University in Prague, Czech Republic. He served as economic advisor to former Czech President Vaclav Havel and later to the deputy prime minister and the minister of finance. He was a 2006 Yale World Fellow.

The Czech Republic became a member of the European Union on May 1, 2004, but is expected to join the Euro Zone only in 2010. What does the country have to do before it can adopt the European currency? Why is it such a long process?

The race from communism to EU is now a closed chapter, but it took the Czech Republic much longer than was expected; the country had hopes that the integration would be earlier. In retrospect, it was beneficial that the Czech Republic had to concentrate its efforts in such a small period of time, because the administration had to immediately focus and had to efficiently work on a wide range of issues in order to comply to the EU demands.

In order to join the Euro Zone, a country has to comply to five master criteria that are very clearly defined and yet excruciatingly hard for many applicants to meet. Indeed, even the average fully-developed nation does not comply with all five. These criteria discipline politicians and pressure them to the point of greatly limiting spending and minimizing the debt-to-GDP ratio. In that way it is an extremely meticulous process that demands a long-term transformation.

What will be the direct consequences of adopting the euro?

It is still a widely-debated issue. In the beginning, Hungary and Poland wanted to join by 2006 and were extremely enthusiastic about it. The Czech Republic, which aimed for 2010, was bitterly criticized for being eurosceptic. Now it can only be grateful for its cautiousness since neither Hungary nor Poland met the standards by 2006. The Czech Republic complies with four out of the five master criteria in a safe and sound way but while it comfortably responds to these requirements, the budget deficit is a constraint and an obstacle that may be tedious to overcome. However, I am positive that the Czech Republic can make it by the year 2010.

June's parliamentary elections paralyzed all legislative processes and left the Czech political scene split. Yet the nation is one of the most stable and prosperous of the post-communist states, and its economic growth for the first quarter of 2006 reached 7 percent. Now that the Czech Republic has been out of a stable government for more than four months, what is the effect on its economic stability? To what extent is the economy dependent on politics?

If you believe in laissez-faire economics, less government is clearly beneficial. I think an economy can easily afford to be out of government for a few months, but this is at the cost of a worse fiscal outcome for the next year. The budget has put itself in an "autopilot" mode, which is very expensive, and it now shows the need for politicians to be in power in order to discipline the budget and the need for individual ministries to minimize the deficit. It is as if the CEO of a big firm went on holiday; the company will still be efficient, but strategic decisions will be delayed. In this instance public spending is largely affected, and after a few months it can thus begin to be problematic.

For how long can political instability not succeed in influencing the efficiency of the economy? Will the current growth be sustainable?

Eventually there will be a fiscal impact, and

the confidence of Foreign Direct Investment will decline. In the long term it might even affect the GDP. However, it is more likely to delay the reform process, and this will be reflected in the economy only on a long-term scale.

A strong supporter of the EU, you were heavily involved in the 2003 referendum campaign and are a fan of European integration. Pro-European partnerships in Central Europe that recently managed the reforms and political undertakings of European integration now seem to be retreating; it seems that they have been worn out by their previous efforts. How would you explain this?

One very significant source of depression is when a high level of happiness has been reached. Today, the Czech Republic has joined this "elite club" of the EU and fulfilled in ten years all the goals it had set for itself. Now the country has somehow lost its aims after such intense efforts. A similar phenomenon can be seen in neighboring countries. All the way up to now, these post-communist states had behaved wonderfully and were true case studies of democracy and of market economy, having started from nothing. Now suddenly, the lack of government in the Czech Republic, the very nationalistic ones in Poland and Slovakia, and the people protesting in Hungary reflect a general fear in Central Europe.

Quite ironically, it seems that the particular energy of integration is now reduced, and now there's no pressure anymore. Now that governments are more relaxed, countries can start voicing old discontents again.

Would you say that the rise of protective nationalists has put and end to the myth of a liberal New Europe?

No, I think this is temporary. The rise of nationalism on the political scene can be explained as a simple reaction to this new European identity and mold. It is normal that national and cultural claims emerge again. I believe it is more a matter of cultural fear than anything else and will be short-lived.

The European Union has been able to contribute to the stability and the democratic transformation of the region. But, paradoxically, this success comes at a time when the Union itself is in doubt. Would you say that this introspection by the EU is currently experiencing damages its image as a positive influence in the Czech Republic?

It is a pity because the EU was a political ideal born out of the war, with the wish to achieve peace; in a way this was successful if one looks at the past fifty years. Now the goal is solely one of economic integration and nothing more. In that respect, the EU has done very well in becoming a market of exchanges, but in openness and foreign policy it is rather non-existent. It has been rather ineffective in helping the world in times of crisis as in Yugoslavia. This weak foreign policy has largely been criticized, and some increasingly define the EU as a fortress. While the U.S. has this history of protectionism, it seems that these roles have been reversed as of late. I find the isolation of the EU unfortunate, and I think that if we want to again play a global role, we have to be more committed to integration and openness.

European Union member states have reached a critical moment. They must decide whether the EU will take a stronger position in international relations and in questions of security. How should the EU react to global challenges, and how can the Czech Republic influence this situation?

I think there is a lot of energy in the new EU countries, which combined have the power to outvote a country like France. They were much more involved in recent affairs with the U.S., and I think it is their role to push and broaden the perspectives of the EU. This fresh view and outlook on foreign affairs is essential.

How do you explain the strong emphasis on partnership with the U.S. from countries in Central Europe?

The Czech Republic has always maintained good relations with the U.S. partly because we were liberated by American troops. Our political parties are influenced by the American model. We have upset some of the old member states by our dedication to keep these ties. The new states have to fight their way in the political arena of the EU, and these events show that they are willing to disconcert the bigger powers and gain for themselves the power to be heard.

THE CZECH REPUBLIC HAS JOINED THIS ELITE CLUB OF THE EU AND FULFILLED ALL THE GOALS IT HAD SET FOR ITSELF. NOW THE COUNTRY HAS SOMEHOW LOST ITS AIMS AFTER SUCH INTENSE EFFORTS.

Serbia Since the Crisis

A Troubled Nation's Unfinished Business

By Garentina Kraja

Garentina Kraja is a correspondent for the Associated Press who reports on politics, security, terrorism, and economics in Kosovo, Macedonia, and Albania. She covered the conflict in Kosovo at the age of 19.

Advertising it as a referendum on Kosovo, Serbia's deeply-divided leadership united in appeals to voters to embrace a constitution, the country's first since the end of a series of ethnic wars under its former president Slobodan Milosevic.

Half of the country's voters took to the polls earlier this month to support the agenda, led by Serbia's nationalist Prime Minister Vojislav Kostunica, backed by its moderate President Boris Tadic and the ultranationalists, the most popular party in Serbia.

The appeal was met with resistance by the several liberal and pro-Western Serbian parties, outspoken critics of the government, who disputed the project offered a real vision for a democratic state. But, passing by a few thousands votes the threshold of 50 percent, Serbia's citizens approved the legal document, stirring a controversy over declaring the UN-run Kosovo as an integral part of its territory, though the province was moved away from Belgrade's orbit years ago.

Branded as Serbia's most important project since the country's democratic forces ousted Milosevic in 2000, the new constitution was tasked to set Serbia in its own path toward European Union nearly two decades after the bloody breakup of Yugoslavia which left an estimated 250,000 dead.

The country needed a new constitution after Serbia's much smaller sister republic of Montenegro voted in a referendum earlier this year to separate from the century-old union with a nation with which it shared the same language, religion and much of the culture. It was the last former Yugoslav republic to part ways with Serbia.

The constitution came at a sensitive time for Kosovo, the territory which is legally part of Serbia but has been administered by United Nations since U.S.-led air strikes stopped Serb forces' brutal crackdown on Kosovar Albanians seeking independence.

The constitution reasserts Serbia's claim over Kosovo, overshadowing talks between the territory's Albanian majority and the leadership in Belgrade that aim to bring about a solution on the future status of the place—an issue long disputed by the two sides.

International analysts monitoring the political scene in Serbia said that the constitution's main goal was to demonstrate Serbian hostility to Kosovo independence and to create further legal barriers against it.

Serbia's leadership sought the voters' support by exploiting the strong emotions that Serbs have toward the province. Albanians, who make 90 percent of Kosovo's population of two million, were not even listed to vote and boycotted it, as they did with other polls in the past.

But in Kosovo, the dwindling minority Serbs—currently 100,000, down from some 230,000, most of whom live in isolated enclaves fearing revenge attacks by Albanians—turned out to vote in huge numbers.

The referendum was another bleak reminder that no peace took hold in Kosovo or over it. The province was as divided as ever and the roots that led to the conflict in early 1990s still entrenched.

The UN and U.S. envoys mediating talks between the two sides have been quick to note that the constitution will have no legal relevance to the future of Kosovo, fearing that the move could inspire a unilateral move by the Albanian leadership, eager to see a status settlement delivered by the end of the year. They insist that Serbia has lost any moral right to govern Kosovo after the bloody conflict.

The new constitution, the West hopes, will give a sounder base to the pro-West-

INTERNATIONAL ANALYSTS MONITORING THE POLITICAL SCENE IN SERBIA SAID THAT THE CONSTITUTION'S MAIN GOAL WAS TO DEMONSTRATE SERBIAN HOSTILITY TO KOSOVO INDEPENDENCE.

ern faction of the society and curb on radical forces ahead of what could be a painful decision on Kosovo's independence. Yet, analysts say, such legal framework will make it impossible for any Belgrade leader to accept the territory's secession. It will linger on as a grim reminder for the Kosovars that Belgrade will keep eyeing the territory for decades to come.

Once the constitution was approved, the effects of the political turmoil in Serbia were quickly felt in Kosovo.

Serbian authorities have called for new elections to be held on January 21. Fearing that the nationalistic rhetoric over Kosovo will turn Serb voters to support ultranationalists, Western officials leading the talks on the status of Kosovo decided to postpone the proposal for the settlement until after the elections.

The process of negotiating over Kosovo has been difficult. Shortly before the province marked the seventh anniversary of the intervention, based on a score card of meeting standards on improving the rights of the Serb minority, the UN Security Council and its Secretary-General Kofi Annan gave a green light to being the discussions on the status of Kosovo and chose the former Finnish president Martti Ahtisaari to lead those talks. United States named a seasoned diplomat, Frank Winser to represent Washington at the negotiating table. An ad hoc advisory board known as the Contact Group, comprised of senior diplomats from U.S., Britain, France, Germany, Italy and Russia set the contours within which the solution should be found: the province could not return to Belgrade's rule; it could not be partitioned and will not be allowed to join with any other neighboring country such as Albania or Macedonia, which has a sizable Albanian minority.

Under the UN auspices, Serb and Albanian leaders have met over the year in several fruitless discussions, mainly centered on the future of the Serb minority in Kosovo—guaranteeing some self-rule in their areas, protecting their religious and cultural monuments and giving constitutional protection to their rights. The talks have ended with no tangible success, but have seen mediators struggling with both sides to push them into compromise.

But, with no change in the most contentious issue—that of whether Kosovo becomes independent as demanded by Albanians or remains linked to Serbia in some way—Ahtisaari and other Western officials came to conclusion that a proposal should be spread out before the Security Council to allow it to decide on the matter.

All Eyes on Kosovo: An ethnic Serb woman walks by banners in the Serb enclave of Gracanica that urge Kosovo Serbs to vote in the October 2006 constitutional referendum a new Serbian constitution to declare Belgrade's sovereignty over the disputed province, a vote that Kosovo's independence-seeking ethnic Albanians largely ignored. (Ermal Meta/AFP/Getty Images)

International Intervention: NATO Secretary-General Jaap de Hoop Scheffer and KFOR commander Roland Kather head to a press conference after their meeting with Kosovo negotiation group in February 2007. NATO's Secretary-General said that the alliance will not tolerate violence in Kosovo, just days after clashes between police and ethnic Albanians protesting a UN plan for the province. (Ermal Meta/AFP/Getty Images)

There has been speculation to what he will propose, with diplomats close to planning the future settlement contending that his proposal with set Kosovo in a path to independence, supervised by the European Union mission that will retain some executive powers on minority matters, police and judiciary. However, there have been reports that the process might be lengthier, with Ahtisaari stopping short of seeking recognition from Security Council on the issue of statehood for Kosovo.

A delay was lately largely anticipated outside Kosovo, mainly because of the fear it could backfire on Serbia's stability, but also because of disagreements between Western Europe, the U.S. and Russia over the province's future, though the Albanian leadership in Kosovo and envoys engaged in the process insisted throughout the process that year's end was the only deadline that everyone should obey.

Expectations were high and managing them could prove difficult with Albanian majority impatient over the legal limbo and a 40-plus unemployment rate which has impoverished the province.

This week, appeals for calm have increased as Western officials in Kosovo showed unease at the delay, concerned over the legitimacy of the Albanian negotiators and their commitment to the process.

The difficulties over Kosovo are not a foreign concept, however. Solving the dispute over the territory has been a tiring effort, with both sides entrenched in diametrically opposing views as to what the future should hold.

Kosovo has many times been referred to as the last piece of the Balkan puzzle. The stakes have never been higher and though the risk of renewed war doesn't quite hold, tensions and animosities that were likely to remain there for years to come are already set into Serbia's constitution.

NATO has a force of 16,000 peacekeepers deployed to stem off any kind of trouble and highlighting the fear over what is to come.

At a EU meeting on Monday, foreign ministers decided to keep the number of peacekeepers in Bosnia intact until the risks of conflict and eventual spill over of Kosovo unrest are diminished.

The force in neighboring Bosnia was to be reduced from 6,500 troops to 1,500, but with the cloud of uncertainty over Kosovo and the possibility of return of ultra-nationalists to power in Serbia, those plans were shelved and postponed again.

Loyal Supporters: Some of the estimated 50,000 attendees of a memorial service for Slobodan Milosevic in front of the federal parliament building in Belgrade in March 2006. The tribute paid the former Yugoslav president indicted for crimes against humanity may be seen as a testament to the sharp divisions in political opinion that pervade the Balkans. (Valentina Petrova/AFP/Getty Images)

Taiwanese Politics: A Family Affair

An Interview with Ercia Chen

Conducted by Carol Duh

Ercia Chen is an election official overseeing Taiwan's 2007 legislative elections on behalf of the Taiwan Central Government.

Background

In May 2006, a series of government corruption scandals broke in Taiwan, leading to the indictment of President Chen Shui-bian's wife for faking government documents in order to embezzle NTD 14.8 million ($450,000) of taxpayer money. Her husband's approval rating now hovers around five percent.

The nature of the island's relationship with China eclipses all other issues in Taiwanese politics today, but the present scandals threaten this political order. Since the end of the Chinese Civil War more than half a century ago, Taiwan and China have maintained a largely hostile relationship. Taiwan, not fully recognized by the United Nations and most other countries around the world, still requires the "Republic of China" identifier on all packages addressed to the island. Relatively young and still seeking identity, Taiwanese culture draws heavily from both China and the United States, and like the U.S., its politics are polarized across two main political parties—in this case the Democratic Progressive Party (DPP), the central party of the Pan-Green Coalition, and the Chinese Nationalist Party, or Kuomintang (KMT), the central party of the Pan-Blue Coalition. DPP President Chen Shui-bian's ascension to the presidency ended over fifty years of KMT rule. Green-inclined activists may seek Taiwanese independence while those who identify with the Blue may hold fast to the Chinese ancestry that most Taiwanese citizens share. Defining the Taiwanese-Chinese relationship extends beyond the political and economic realm and into the public psyche.

Political identity is an extremely sensitive issue for nearly everyone in Taiwan – my mother's DPP-leaning family paired with the KMT-inclined Duh clan spelled disaster for my parents' wedding ceremony. When I inquired whether I could help with Taiwan's 2008 presidential election after my graduation, my parents insisted it would be an impossibility without breaking ties with half of my extended family. But when my mother proudly announced that her younger sister had been appointed an organizer of the upcoming legislative elections this December, my father suggested I seize the opportunity to speak with her, in the hope that perhaps I could understand why the lines among politics, identity, and family remain permanently blurred in Taiwan.

What is your involvement in these elections?

I serve the Taipei City Government in the Department of Civil Affairs. This means that I am responsible for all of the administrative work on the elections here in Taiwan. Our election laws are complex: we have established time periods during which candidates are allowed to campaign, and there are many complicated rules about posters, how many can go on each wall and for how long can they be hung, for example, and I am also responsible for the enforcement of budget rules. I make sure that all these rules are followed by each candidate's campaign during each campaign cycle.

In December, we held our fourth democratic mayoral elections and our tenth democratic city council elections. New leaders were elected in Taipei, the capital, and in Kaoshiung, the second largest city in Taiwan. The KMT retook power in Taipei, and this election was widely seen as a no-confidence vote on President Chen Shui-bian.

In that election, the Taipei Civil Affairs budget needed to be distributed to other city governments in the country. There was a Central Election Committee that over-

saw this process. Part of my responsibility is to be sure that the budget is distributed correctly.

For the 2007 Central Government legislature elections, I am responsible for many of the permissions that are associated regarding the election. There is a great amount of coordination involved with this; for example, the registration of candidates alone involves an intense review of the candidate's qualification. The process of vote counting is also extremely complex.

Why do you feel that this year's elections are so important?

This election is most important because it represents the first after a very radical change in Taiwan's political structure. The General Assembly, which used to be composed of 300 members, has been eliminated altogether, and the Legislative Yuan has been halved from 225 members to 113. This would be equivalent to the United States eliminating its House of Representatives and half its Senators. This also means is that each election district has become larger, and Taiwan has been entirely redistricted to reflect these larger districts.

An important consequence of this reduction in government is that the many policy committees, on matters such as defense, education, and internal affairs and which are composed of members of the legislature, are much smaller than they used to be. After this election, as few as three members of the legislature may have the power to determine policy in a particular area for all of Taiwan. This significantly empowers each member of the legislative. This will likely make it much easier for the legislative branch to challenge the executive branch, which has lost a substantial amount of the public's faith in the past year. On a practical level, this new structure seems likely to enable the Pan-Blue Coalition to increase its margins in the legislature, which could eventually result in a change in relations with China, the issue that is in each citizen's mind every day.

What is the political environment among the public?

Voting has always been a point of deep responsibility for the Taiwanese people, with recent voter turnout of 83 percent. Compare this with the United States' 50 percent in its 2000 presidential election, with Minnesota, the state with the highest level of turnout, at 67 percent. When the Communists established the People's Republic of China on mainland China, the Nationalists fled to Taiwan, which remains Asia's oldest constitutional republic, established in 1912. The people here have not yet forgotten the significance of being able to choose their own government. After the government lifted martial law in 1987, a series of political reforms were launched. In the process, democratization was significantly increased. 1996 marked the first time the people of Taiwan participated in a direct presidential election, and 2000 marked the end of five decades of KMT rule, when power was peacefully transferred to the DPP. The people of Taiwan identify strongly with their respective political parties, and primary elections are usually intense. The parties are currently hotly debating and discussing their primary candidates.

Yet there is still a chance that the 2007 legislative elections may be combined with the next presidential election, which is now scheduled for March 2008. There have been many election cycles in a short period – for local offices in December 2006, for the national legislature this December, and for president just three months after that. It takes a lot of energy to immerse yourself in these elections. Political rallies are very popular in Taiwan, and citizens tend to throw themselves into the political culture. There may be a detrimental effect on voter turnout if people must go to the polls so often. On the other hand, the people cherish their right to vote.

What impact do you think this election may have on Taiwan's relationship with China?

The Kuomingtang, or the Chinese Nationalist Party, favors stability and leans towards Chinese reunification. If these elections result in a KMT majority along with a KMT president in 2008, this will likely result in a closer relationship with China. The KMT is strongly supported by citizens who have a commercial interest in mainland China. Supporters of the KMT also come from many of the mainlanders who moved to Taiwan in recent generations.

VOTING HAS ALWAYS BEEN A POINT OF DEEP RESPONSIBILITY FOR THE TAIWANESE PEOPLE, WITH RECENT VOTER TURNOUT OF 83 PERCENT. COMPARE THIS WITH THE UNITED STATES' 50 PERCENT IN ITS 2000 PRESIDENTIAL ELECTION.

TAIWAN REMAINS ASIA'S OLDEST CONSTITUTIONAL REPUBLIC. THE PEOPLE HERE HAVE NOT YET FORGOTTEN THE SIGNIFICANCE OF BEING ABLE TO CHOOSE THEIR OWN GOVERNMENT.

This deep connection with China stems from the cultural and familial links that continue to exist. 1949, when Chiang Kai-shek retreated from the mainland and moved the Nationalist government to Taipei, is not so long ago. The Communists who established rule in mainland China disowned Taiwan as illegitimate. A population of 1.3 million refugees, which was composed mostly of soldiers, KMT party members, and intellectuals, moved to Taiwan in retreat. Despite the split in political ideology, KMT members feel a deep tie to their ancestral homeland, where family members may still live, and feel the need to reunite with China some day, or at least maintain these ties.

By the same coin, members of the Democratic Progressive Party don't quite understand why the KMT, in such a short period of time, have experienced an about-face in their opinion of China's Communist Party. In 1949, the animosity and distrust between the KMT and the Communists was potent enough for the KMT to move off the mainland. Now, suddenly, the KMT hopes to show goodwill to China in hopes of reconciliation.

The DPP builds it foundation solidly in native ideology. They tend not to trust new immigrants from mainland China. The DPP is often considered more liberal in nature in comparison to KMT's more conservative stance. The party was first established in 1986 and remained illegal until 1991. The party had a more radical stance until the election of President Chen Shui-bien, who softened the party's views to placate more moderates. The president also promised not to declare independence symbolically or formally if China agreed to not attack Taiwan.

Therefore in terms of future relations with China, the President's corruption scandal has seriously jeopardized the presidency for the DPP in 2008. Since the power in the legislative branch has been concentrated, a KMT majority could result in steps towards Taiwanese-Chinese reunification.

Is this election to be a preview of next year's presidential election?

As a result of the erupting presidential scandals, one of the main reforms being debated may determine the fate of the Taiwanese executive branch. A constitutional amendment that would radically change the nature of the presidency by removing power from the president and instead vesting it in a prime minister is a very real possibility. The president would be more of a figurehead than a figure of power. If the legislative election remains separate from the presidential election, the legislature can certainly take measures to modify the nature of the presidency before the presidential election. The fact that power will be so much more concentrated will most certainly expedite any changes in policy or law.

An Engaged Public: Protesters shouts slogans against alleged fraud in the last Taiwanese presidential election during a mass protest in Taipei in March 2004. Ms. Chien says that Taiwan's citizens are active in the political process, with political rallies a frequent sight in cities across the island. (Saeed Khan/AFP/Getty Images)

Nukes, North Korea, and the Future

An Interview with Michael Needham

Conducted by Michael Camarda

Michael Needham is Director of the Asian Studies Center of the Heritage Foundation.

Why did North Korea go ahead and test a nuclear weapon?

Kim Jong-il has come to the conclusion that, for a variety of reasons primarily related to the sustainability of the Kim family regime, he needed to obtain and now hold on to nuclear weapons. His calculation is that if he can hold on to his weapons for long enough, the world will eventually come to terms with North Korea as a nuclear power.

To achieve this goal, Kim Jong-il has only two plays: belligerence and negotiation. What we have seen recently—particularly the July 4 Taepodong-II missile test and the October 9 nuclear test—is his opting for belligerence. That is, hoping that by raising the stakes in the standoff he can create a sense of unease in the world that drives a wedge between America and Japan on the one hand and South Korea, China, and Russia on the other. What he's found is that this strategy did not work. By raising the stakes, he infuriated China, further driving his regime into isolation and pulling the rest of the world together on this issue.

Now he has announced he will rejoin the Six-Party Talks—negotiations involving China, Japan, South Korea, North Korea, Russia, and the United States—which means he will try his negotiating strategy. Kim Jong-il wins if he can transform the debate from one that is the world versus Kim Jong-il to the United States versus North Korea. Therefore, we will find North Korea raising contentious issues, such as the sequencing of benefits from the rest of the world to North Korea should he give up his weapons, as well as issues unrelated to the Six-Party Talks, such as financial sanctions placed on his regime in response to other illicit activities beyond his nuclear program, to try and cause member countries to the talks to become frustrated with each other.

Is the North Korean situation more of a political crisis, military crisis, or humanitarian crisis?

It's a crisis on a number of levels. It's unacceptable to allow one of the world's most dangerous and unpredictable regimes access to nuclear weapons. The human rights violations that occur in North Korea are horrific. The criminal activity of the Kim family regime—from counterfeiting to narcotrafficing to small arms smuggling—cannot be allowed. His hostile military posture towards South Korea—including his rockets aimed at Seoul and other targets in the Republic of Korea as well as his troop posture in the demilitarized zone—is threatening. There is no shortage of problems that North Korea poses for the world. From an American standpoint, North Korea poses a fundamental threat to many of our key interests at home, in Northeast Asia, and around the world.

North Korea has a long history of selling military technologies it develops. Will its nuclear capabilities fall into the same realm?

Some people believe that nuclear weapons sales are a line that even Kim Jong-il would not cross. I see no reason other than blind optimism that they would believe that. As you say, he has a history of selling whatever military technology his regime develops—including some of the most dangerous missiles ever sold on international markets. Risking American interests on blind faith strikes me as wholly irresponsible. Instead, we need to protect our interests through a policy of containment

by monitoring what goes in and out of North Korea; defense by deploying a comprehensive missile defense system capable of shooting down a nuclear-armed North Korean missile when, at some point in the future, that capability will exist; and finally an offensive deterrent by making it clear that if a nuclear weapon is ever used—by either North Korea or a non-state actor—against American interests, we will respond by destroying the North Korean regime and its military capabilities.

Explain the dynamic between the People's Republic of China and the Democratic People's Republic of North Korea.

It's a complex one built upon their forty-five-year-old Treaty of Friendship, Cooperation, and Mutual Assistance. In this capacity, China has served as a safe harbor for North Korea's proliferation and illicit activities. Taken in a vacuum, most people in the Chinese government would probably prefer that North Korea not have nuclear weapons. But given the options that are actually available, the Chinese government seems to have opted to control the North Korean nuclear threat by sporadically applying pressure aimed at forcing North Korea to act less belligerently, rather than fully eliminating the threat. Some, particularly in China's People's Liberation Army, appear to view the North Korean threat as a convenient way to tie down America and weaken our alliance with South Korea as well as threaten Japan.

North Korea is ranked as first worldwide by the Committee to Protect Journalists in its violations of free speech. How much do the citizens of North Korea actually know about the outside world, and especially how Kim Jong-il's regime is viewed?

The North Korean people are among the most brutalized in the world, and they have almost no access to information not fed to them by the Kim regime. If, for example, a party official were caught smuggling a radio back into North Korea following an official visit to another country, he would likely face torture and a life sentence in a camp for political prisoners.

Six-Party Talks versus direct talks. Why is this such a source of contention? What are the implications of each?

This is the fundamental question of how one views the crisis. This is not a crisis that exists between only two parties. Kim Jong-il knows that he can win a standoff if the rest of the world perceives it as one between him and the United States—or even better from his point of view,

Burning Passions: Protesters burn a North Korean flag and photo of Kim Jong-il during an anti-North Korean and pro-U.S. rally in front of the Seoul City Hall in October 2006 to mark the 60th anniversary of the founding of the UN. South Korean Foreign Minister Ban Ki-moon, the incoming UN secretary-general, said he would play an active role in finding a peaceful settlement to the crisis over North Korea's nuclear weapons test. Mr. Needham says that relying on "blind optimism" to solve the situation is "wholly irresponsible." (Kim Jae-hwan/AFP/Getty Images)

Kim Jong-il versus George W. Bush. It is not only the United States that demands Kim Jong-il give up his nuclear weapons. It is a united, international effort. The Six-Party Talks mean that all of these countries work together to put pressure on Kim Jong-il. Direct talks mean the United States, which has few pressure points to squeeze, tries to reach a settlement with North Korea and then has little leverage to force compliance.

Whom do sanctions hurt the most?

Kim Jong-il stays in power by paying spoils to the elites in his military and intelligence services. By restricting Kim Jong-il's access to luxury goods, currency, fuel, and other similar products, we put real pressure on his means to stay-

ing in power. The suffering of the North Korean people is a separate issue caused by Kim Jong-il's brutality, refusal to care for the needs of his people or to open up his economy—a measure strongly pushed by the Chinese, and his divergence of North Korea's few resources to his own needs.

What options does the United States have? What options does the UN have? Explain the dynamic between the U.S. and the UN on the North Korean issue.

On the North Korea issue, the United Nations has come a long way in the last several years. We went from a situation two or three years ago where the U.S. could not even get the North Korea situation on the agenda of the Security Council, to having the Security Council pass a serious Chapter VI non-binding resolution in July after the missile test, to have a serious—not perfect, but very good—Chapter VII resolution passed in October. This is real progress, and former U.S. Ambassador to the UN John Bolton deserves tremendous credit for a significant diplomatic victory. Nonetheless, ultimately the word of the UN is only as good as the will of the countries that make up the UN to follow up on those words. And that's where the action really is.

The Japanese, the only people in the world have suffered the deadly effects of a nuclear blast, seem to have inklings of remilitarization. What does this mean for the region?

There are two questions: Will Japan become a more normal military power, and will Japan become a nuclear weapons state? The answer to the first question, I believe, is yes. Japan is moving in that direction, and they will have a deliberate national discussion on the implications of Japan's role as a responsible stakeholder in the existing international system. The answer to the second question is no. Japan fully understands that it need not become a nuclear power because it has the full protection of America's offensive nuclear umbrella and therefore coordinates closely with the U.S. on missile defense. Nuclear proliferation in any country has the potential to cause great instability regionally and worldwide. As such, responsible countries have a strong interest in avoiding nuclear weapons proliferation.

How do South Koreans view their counterparts in the North?

Most fundamentally, South Koreans look at the people of North Korea as fellow Koreans. And when they see pictures from North Korea, particularly after the 1994-95 famine, they saw a people that in past decades had been perceived as enemies, but then were seen as poor, starving, and weak. All of us share that assessment. Militarily, South Korea mainly views North Korea through the prism of having its capital city easily within range of utter destruction in a matter of minutes by North Korean rockets. As such, South Korea values stability and economic engagement in the hopes of gradually changing the North Korean regime. This is what has become known as former President Kim Dae-jung's Sunshine Policy. American policymakers, on the other hand, view economic engagement as part of the problem, arguing that the resources get funneled into augmenting the regime's existing military and totalitarian strengths.

Explain Kim Il-Sung's doctrine of *Juche* and how it affects his son's regime today.

Kim Jung-il is less affected by his father's policy of *Juche* than by his contribution of *Songun*, or army-first. *Juche* is the origin of the insular nature of North Korea's regime and stems from the Sino-Soviet split in the 1960s. It boils down to a commitment to self-reliance in the political, economic, and military spheres. It also includes, according to Kim Jong-il himself, a commitment to policy reflecting the will of the masses, which is obviously not the case in practice. *Songun*, which Kim Jong-il incorporated in 1996, is the policy by which North Korea places the needs of its military—for currency, food, medical care, and anything else—as the country's top priority.

Kim Jong-il is the centerpiece of this regime. What will North Korea look like when he is no longer in power?

This is certainly the million dollar question that everybody would like to know the answer to. It is very much an open question as to whether any of his children are capable of taking his place: His eldest son Kim Jong-nam has reportedly fallen from favor; a best-selling memoir claims that another son, Kim Jong-chul, is too feminine in his father's eyes; some suggest Jong-chul's younger brother Jong-woon is primed to take over.

If the Kim family regime falls from power, there are any number of possible outcomes, including gradual or rapid integration with South Korea, which China would find problematic; the establishment of a new North Korean regime, which could take on any number of personalities, each personality with different levels of support from other international actors; and a military invasion by the Chinese. With this uncertainty, American policymakers must work closely with our friends and allies in advance so that when the Kim family regime falls—which it will eventually—a plan exists to ensure greater security, freedom, and human rights in Northeast Asia. P

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Deadly Inaction

The Failure of Preventing North Korea's Nuclear Weapons Development

By Hyeong Jung Park

Hyeong Jung Park is a Visiting Fellow at the Center for Northeast Asian Policy Studies and Foreign Policy Studies at the Brookings Institution.

In the wake of the anti-terrorist and Iraq wars, the U.S. has decreased its attention to East Asia. The U.S. has even invited China to play an important role in these matters of urgent concern, such as North Korea's nuclear weapons development.

This is somewhat different from the situation in the mid-1990s, when the first of North Korea's nuclear challenges was dealth with. At the time, the bilateral negotiations between the U.S. and North Korea had been the central tool to stop North Korea's nuclear weapons development. In the second nuclear crisis in the 2000s, however, it is expected that China plays the central leadership role to realize a breakthrough in negotiations between the U.S. and North Korea. The ROK shared more common interests with China than with the U.S. and cooperated accordingly. The main partners of the U.S. in discussing related problems about resolving North Korea's nuclear weapons program have been neither North or South Korea, but primarily China and then Japan.

The problem is that, in the current constellation, there is no country that regards the prevention and dismantling of North Korea's nuclear weapons program as its primary political goal and concentrates sincerely on it. The ROK, the U.S., and China apparently share consensus on not tolerating North Korea's nuclear weapons program. Nevertheless, each country, for different reasons, has pursued goals other than the denuclearization of North Korea as its primary policy objective.

The United States

In this regard, the Bush Administration and the U.S. have three problems. Foremost, the core of attention has been the anti-terrorism and political restructuring of the Middle East. Not only the Bush Administration but also the majority of American public would not like to be distracted by North Korea's nuclear weapons development in order to concentrate themselves on the Middle East, and especially on Iraq. Accordingly, the Bush Administration has not taken serious counter-measures on North Korea's nuclear weapons development, even if its determination to possess and demonstrate nuclear weapons has become gradually ever clearer.

The highest American authorities have repeated the pattern of taking a policy of malign neglect toward North Korea—which conspicuously threatened of its possessing and demonstrating nuclear weapons—and paying intermittent attention only to its occasional desperate brinkmanship.

The second problem is that the Bush Administration has lost policy leadership and legitimacy with regard to the ROK, China, and Japan, for three reasons. First, there have been serious contentions between hardliners and moderates in the Bush Administration. The former insisted that only regime change would resolve the problem, while the latter would be satisfied with more limited goal, i.e. regime's change of behavior. These conflicts have impeded consistency and coherence of U.S. policy toward North Korea and constantly puzzled other concerned parties. Second, outside stakeholders generally found the North Korea policy of the Bush Administration overly rigid and tough, tantamount to demanding North Korea's surrender or regime change. So the usual pattern has been that they de-

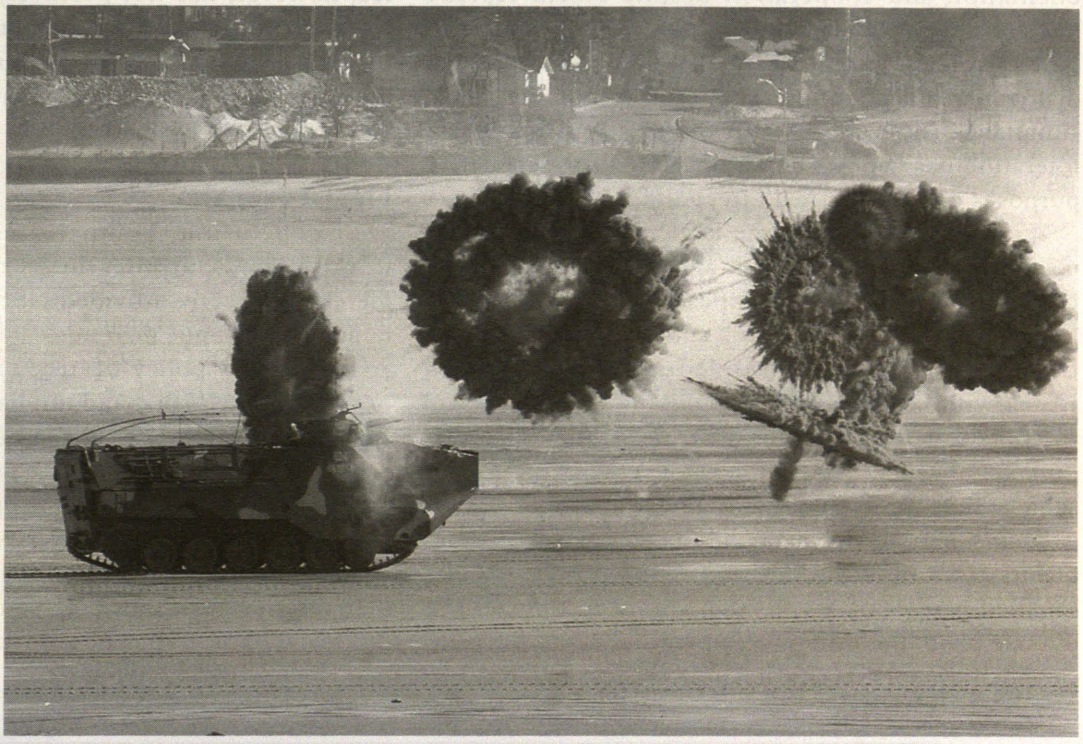
THE PROBLEM IS THAT THERE IS NO COUNTRY THAT REGARDS THE PREVENTION AND DISMANTLING OF NORTH KOREA'S NUCLEAR WEAPONS PROGRAM AS ITS PRIMARY POLITICAL GOAL AND CONCENTRATES SINCERELY ON IT.

manded the 'flexibility" and 'creativity' of the Bush Administration's policy before they started talking with North Korea. Third, there has been suspicion that the U.S. might have manipulated information to the political needs of the Bush Administration, especially after the failure to finding weapons of mass destruction in Iraq.

People's Republic of China

The United States' third problem is related to China, so it is possible to simultaneously address it and explain China's position. In order to concentrate itself on Iraq, the U.S. has invited China to play a major role in dealing with North Korea's nuclear weapons development. This implies the United States' tacit acknowledgement that the outcome in North Korea is up to China, and that China has both responsibility for and certain rights when it comes to North Korea. The United States' invitation for China to play a bigger role in North Korea's denuclearization supplied China simultaneously opportunities for expanding its influence in Northeast Asia but also risks for management failure. China began to see its contribution in the context of enhancing its leverage in relations with the U.S., possibly to the detriment of Taiwan, and expanding influence especially on South Korea.

Considering the Bush Administration's direction on North Korea policy, it is contradictory that the U.S. has outsourced its diplomatic efforts to China. In other words, if the U.S. places high expectations on China's role in the denuclearization of North Korea, it might imply that it does not itself have the determination to end and dismantle North Korea's weapons development. The question here is: How can you ask someone with significantly different interests to resolve your problem in the way you would seek to solve it? Quite contrary to the Bush Administration, which prefers re-



Ready for War: A South Korean amphibious assault vehicle lands at Mallipo beach in Taean, South Korea, in March 2006 during a joint U.S.-South Korea military exercise. Thousands of troops from both nations participated in week-long war games amid strong protests from North Korea at what Pyongyang calls a warm-up for nuclear attack on the communist state. Mr. Park, however, warns of the consequences of the United States' "outsourcing" to China diplomatic efforts toward North Korea. (Jung Yeon-je/AFP/Getty Images)

gime change to a nuclear North Korea, China is expected to favor a nuclear North Korea to a destabilized one.

The real role of China has been that of a shock absorber, preventing North Korea's brinkmanship for nuclear arms possession and demonstration from escalating into a more dangerous crisis in the region. China has persuaded and coerced North Korea not to break away from the Six-Party Talks framework. For all of that, China, like the U.S., had not taken decisive measures to prevent North Korea from developing nuclear weapons. China became angry for North Korea's defiantly having experimented with nuclear detonation and reacted accordingly to inflict some inconveniences to North Korea, but nothing more.

Republic of Korea

It has been most embarrassed by the second North Korea nuclear crisis. Its official position has been zero toleration of North Korea's nuclear weapons. It has, however, another two principles, regarded as at least equally important: the continuation of inter-Korean reconciliation and cooperation despite North Korea's nuclear development, and the peaceful resolution of North Korea's nuclear weapons development through dialogue and negotiation. The result of pursuing them simultaneously has been that the first principle of no toleration has kept its importance only for declarative purposes and lost its real effect and its teeth.

With these principles, the ROK, in fact, wanted to maintain good relations with and to restrain both the U.S. and North Korea. It appeased the U.S. with the first principle of no toleration and tried to restrain the U.S. with the remaining two. It tried to please North Korea with continuation of economic assistance and to contain it with the other two principles. The purpose has been to prevent tension escalation and to achieve peaceful resolution of the crisis.

This position, however, has been object of complaints from both the U.S. and North Korea and has satisfied neither of them. With regard to the U.S., on the one hand, the Roh government has taken the critical position to the U.S.'s Korea policy and tried to change the ROK-U.S. relations into more "equal" relations. The Roh government also tried to maintain an independent North Korea policy and to enter into a separate deal with North Korea. On the other hand, it has tried to satisfy the needs of the U.S. and to solidify the relations of the two countries through measures such as the dispatch of ROK troops to Iraq, the relocation of U.S. forces in South Korea, and the unexpected initiation of negotiating the KORUS FTA.

With South Korea's accommodative policy and assistance, North Korea could play the nuclear game without being cornered and without facing serious economic deterioration. South Korea's policy has contributed to reducing tensions and to bringing North Korea to the negotiation table for the time being, but has failed to stop North Korea's nuclear weapons development. Even after North Korea's declaration of possessing nuclear weapons, the South has thought to be able to resolve the problem with deeper accommodation. The joint declaration of September 19 seemed to verify South Korea's position. North Korea, however, has not positively responded to South Korea's compassionate appeasement, and instead betrayed the expectation. As a result, the South failed to prevent North Korea from launching missiles in July and testing a nuclear weapon in October of last year.

Final Thoughts

In conclusion, South Korea and the U.S. have worked cross-purposes in North Korea policy and thereby indirectly provided North Korea with opportunities to continue their nuclear weapons development. South Korea's policy of reconciliation and cooperation with the North could not have succeeded without support from the U.S. The American policy of pressure and negotiation could have not borne positive results without collaboration from South Korea. North Korea could see the divide between the two and become quite sure it would not be seriously punished even after its nuclear test. Therefore it went ahead with the test and is trying now to be acknowledged as a true nuclear power.

IT IS CONTRADICTORY THAT THE U.S. HAS OUTSOURCED ITS DIPLOMATIC EFFORTS TO CHINA. THIS MIGHT IMPLY THAT THE U.S. DOES NOT ITSELF HAVE THE DETERMINATION TO END NORTH KOREA'S WEAPONS DEVELOPMENT.

Entering a New Era

Vietnam Joins the WTO

By Tung T. Ngo

Tung T. Ngo is a Managing Partner of VILAF Lawyers, the leading law firm in Vietnam. He was a 2006 Yale World Fellow.

On November 7, 2006, the General Council of the World Trade Organization approved and granted its 150th membership to Vietnam. On this occasion, WTO Director-General Pascal Lamy said, "The remarkable efforts that Vietnam has put into preparing for membership should be an inspiration to us all, as several members have observed." The decision ends over eleven years of preparation, including eight years of negotiation. Vietnamese Minister of Trade Truong Dinh Tuyen remarked that "WTO accession poses major challenges to Vietnam's economy. However, we do believe that with cooperation extended by the members, Vietnam will make the most of opportunities, successfully handling challenges, ensuring fast and sustainable growth, proactively playing its part for the development of the multilateral trading system." With this confidence, the Vietnamese National Assembly promptly approved Vietnam's accession to the WTO on November 26, 2006, within a month after the approval of the WTO General Council. This accession also gives rise to a broader hope for the people. The Vietnamese people had awaited this watershed event for a long time and happily welcome it, anticipating deep changes in the country not only in terms of the economy but also in terms of democracy, following this economic improvement.

Although most public attention has been focused on tariff cuts and increased market access opportunities for Vietnamese goods following WTO accession, WTO membership also involves ratification of a series of supplementary agreements covering issues such as trade in services, intellectual property protection, abolition of prohibited subsidies, and trade-related investment measures. These agreements require each member country's legal system to be sufficiently developed to effectively enforce the rights and obligations contained therein. During the working party process, other WTO members have helped to ensure that Vietnam is structurally and economically capable of meeting its commitments under WTO rules.

In terms of legal developments, Vietnam has come a long way since 1995, with many landmark laws enacted to modernize the legal business framework. The speed of reform has accelerated considerably in the last few years, with the enactment of the amended Civil Code of 2005, Land Law of 2003, Commercial Law of 2005, Intellectual Property Law of 2005, Bankruptcy Law of 2004, Competition Law of 2004, Securities Law of 2006, Law on Real Estate Business of 2006, Foreign Exchange Law of 2005 and Environment Law of 2005, among many others. One of the most significant legal developments has been the enactment of the Law on Investment and Law on Enterprises in 2005, which for the first time brings all foreign, domestic, and state-owned investment and corporate activities under a single regulatory regime.

However, although accession has now concluded, the legal reform process must continue. Membership in the WTO requires Vietnam's full commitment to the development of a rule-of-law state in which business activities are fairly and transparently regulated according to clearly-established rules. Other WTO members may bring a complaint to the WTO dispute resolution body if they believe their nationals are not being treated fairly in their investments in Vietnam. Enactment of laws is a good first step, but the authorities must continue to implementing regulations that reflect WTO principles, and officials must be adequately trained in the enforcement

and administration of the laws.

This article examines some key issues for the Vietnamese legal system arising from WTO accession.

Foreign Investment

Although the WTO was primarily established to liberalize trade in goods, the General Agreement on Trade in Services also contains important principles on international trade in services, including foreign direct investment.

The two main pillars of GATS are most-favored-nation status and national treatment. MFN status means that "each Member shall accord immediately and unconditionally to services and service suppliers of any other Member treatment no less favorable than that it accords to like services and service suppliers of any other country." That is, investors from all member countries must be afforded equal treatment across all sectors. National treatment means that foreign investors must receive treatment "no less favorable" than that of domestic investors. Unlike MFN status, national treatment does not apply generally, but only to specific sectors inscribed by member states in their respective schedule of commitments.

With the passage of the Law on Investment 2005, Vietnam has incorporated these two main concepts into domestic law. Article 4.1 provides that "investors shall be permitted to invest in all sectors and in all industries and businesses which are not prohibited by law," while Article 4.2 states that "the State shall provide equal treatment before law to all investors from all economic sectors and as between domestic investment and foreign investment."

However, foreign investment in certain sensitive sectors such as banking, insurance, aviation, import-export, and distribution will continue to be restricted for some time following WTO accession. Investment in these so-called "conditional" sectors is subject to restrictions contained in international agreements—most relevantly, the schedule of commitments agreed to by Vietnam during the working party negotiations. Most foreign investors expect foreign ownership limits in these sectors to be subject to gradually-increasing limits. For example, foreign investors may be allowed to own 49 percent of a distribution business in Vietnam for a period, followed by an increase to 51 percent for another period, with 100 percent foreign ownership eventually available. In the banking sector, we have seen that foreign ownership of domestic banks is subject to a 30 percent ownership limit, although it should be noted that foreign banks are now permitted to establish 100 percent-owned subsidiaries in Vietnam following the issue of Decree 22/2006 in February this year.

Of note is the transparency requirement in GATS requiring member states to promptly publicize all relevant measures of general application and international agreements pertaining to trade in services. Hence, Vietnam is obliged to publish its commitments on foreign investment in conditional sectors promptly upon WTO accession. All investors, both domestic and foreign, eagerly await publication of these commitments.

Elimination of Prohibited Subsidies

In joining the WTO, Vietnam is now obliged to eliminate prohibited subsidies on non-agricultural goods, in accordance with the Agreement on Subsidies and Countervailing Measures. This Subsidies Agreement prohibits subsidies that require recipients to meet certain export targets or to use domestic goods instead of imported goods. This is to ensure that global trade in goods is conducted on a level-playing field without manufacturers receiving unfair support from governments.

Vietnam's Corporate Tax Incentives

Vietnam needs to pay particular attention to its obligations under the Agreement because of its policy of encouraging investment projects through the granting of tax incentives. The Agreement makes clear that the granting of tax credits or preferential tax rates constitutes a "subsidy." Until very recently, investors were granted significant tax breaks if they achieved certain export ratios, which clearly constitutes prohibited subsidies under the Agreement.

For example, preferential tax rates applied to projects for production or trading of goods which exported more than 50 percent of the total goods produced or traded in a fiscal year. Additional tax breaks were granted under for export projects that performed well and for exports to new markets. These incentives were withdrawn by Decree 108/2006 implementing certain provisions of the Law on Investment in respect of newly licensed projects. However, the question remains how to manage prohibited tax incentives that have already been granted to enterprises and which form part of the investor's investment licence. There is no simple solution to this problem. Vietnam is legally bound by its international commitments to abolish prohibited subsidies, but is morally bound to honor its commitments to investors. Such commitments may run for many years.

The government may consider issuing a separate regulation which specifies how investors shall be compensated for their loss of benefits. However, the issue of compensation needs to be carefully considered, since providing direct compensation to investors for the withdrawal of a subsidy may in itself constitute a subsidy. The preferred option should be negotiation between the government and the investor to reach a mutually acceptable outcome. If no agreement can be reached, then arbitration may be required.

Import-Export Tax Exemptions

At present, Vietnamese import-export tax regulations

grant an exemption from import duties to raw materials used for producing export goods. This exemption may be inconsistent with the Agreement on Subsidies as, in effect, it reduces the cost of production for enterprises with large export quotas.

Intellectual Property Rights

The Agreement on Trade Related Aspects of Intellectual Property Rights imposes obligations on WTO member states to respect and enforce intellectual property rights. The TRIPs Agreement requires member states to comply with substantive provisions of major intellectual property agreements such as the Berne Convention for the Protection of Literary and Artistic Works and the Paris Convention on Patents, to which Vietnam is already a signatory. The TRIPs Agreement also extends the application of such agreements, for example by stating that computer programs will be protected as literary works under the Berne Convention and that authors of computer programs and producers of sound recordings must be given the right to authorize or prohibit the commercial rental of their works to the public.

Member states are obliged to provide procedures and remedies under their domestic law to ensure that intellectual property rights can be effectively enforced, both by foreign and domestic rights holders. Procedures should permit effective action against infringement of intellectual property rights but should be fair and equitable, not unnecessarily complicated or costly, and should not entail unreasonable time-limits or unwarranted delays. Finally, under the TRIPs Agreement parties should provide for criminal procedures and penalties, at least in cases of willful trademark counterfeiting or copyright piracy on a commercial scale. Remedies should include imprisonment and fines sufficient to act as a deterrent.

The new Law on Intellectual Property, which came into effect on July 1, 2006, reflects these principles and represents a significant step forward for the recognition and enforcement of intellectual property rights in Vietnam.

Generally, intellectual property rights are protected in Vietnam upon registration on a first-to-file priority basis, except for trade secrets, geographic indications, and trade names (which are entitled to legal protection as far as they fulfill their own conditions of formation and usage). Registration is not a prerequisite for copyright protection although it is a prima facie evidence for protection.

During Vietnam's WTO negotiations, other countries expressed concern regarding the ability of rights holders to protect and enforce their IP rights in Vietnam. The Law on Intellectual Property specifically deals with the issue of enforcement and provides for civil, administrative, and criminal remedies for IP violations. Civil remedies include injunctions and actions for damages. Administrative remedies are generally speedier and include confiscation and destruction of violating goods, suspension of the business activities of those infringing IP rights, and customs interception of suspected violating goods. IP violations may also incur criminal liability in accordance with the Criminal Code, which provides for significant criminal penalties for organized dealing in counterfeit goods or industrial property—including trademark—violations.

Moving Toward Political Freedoms

The main planks of Vietnam's business legal framework have been laid down in the last few years through the enactment of many landmark laws discussed above.

The challenge now for Vietnam is to ensure that the liberalizing trend in these laws continues to be reflected in implementing regulations and in administration by state officials. In particular, authorities need to ensure that rights existing on paper can effectively be enforced in practice; that judicial and administrative procedures are conducted fairly and transparently, and do not discriminate against foreigners; and that commitments made to investors when establishing investment projects are honored according to their terms. Vietnam has taken many steps forward regarding the rule of law.

The Vietnamese political system has also begun to change. For instance, the National Assembly has become increasingly more powerful to speak its own voice, and the Communist Party has not been resistant to all change. With more and more international integration, we hope that the Vietnamese Communist Party will, sooner or later, put the interest of the Vietnamese people and the nation above the interest of any small group of people.

As an official member of the international community and under the higher pressure of the people, hopefully the Communist Party in Vietnam will restrain themselves within the realm of the laws and permit the independence of the judicial branch, treating not only the foreign investors but also its own people fairly before the law. Without the rule-of-law foundation, we will not have a civilized society. The alienable rights of the people and the property rights of local businesspeople and foreign investors must be secured and strictly protected by laws for them to feel confident in building up their own prosperity and bringing civilized society to Vietnam.

In this sense, joining the WTO is significant for Vietnam in a broader sense than in purely economic terms. More generally, WTO accession may also herald a new era of transparency and equity in dealings between individuals and the state, which encourages both economic growth and social cohesion. This is the opportunity now available to Vietnam, and all observers are confident that it will be taken. P

Natural Limitations

Assessing the Potential of the United Nations

The United Nations has undergone significant change over the last few months. Most importantly, Ban-Ki Moon, a soft-spoken diplomat from South Korea, was elected secretary-general after ten years of Kofi Annan at the helm. Although Mr. Annan admirably proved himself to be a dedicated advocate for human rights and development, his tenure witnessed the $64 billion dollar Oil-for-Food scandal, and he leaves office with a slate of unresolved international security issues that includes Iran and North Korea's nuclear programs and continuing genocide in Darfur. While most of these problems cannot be blamed on Mr. Annan, they suggest the need for a change at the UN.

Unfortunately, there are a few troubling signs that Ban-Ki Moon's tenure as secretary-general may come to mean business-as-usual at Turtle Bay. Secretary Ban appointed Alicia Bárcena Ibarra as under-secretary-general for management, a position responsible for overseeing and reforming the bloated and inefficient UN bureaucracy. Ms. Bárcena Ibarra, a UN insider who appears to have little previous administrative experience, does not seem like a leader who will be willing or able to tackle the major managerial changes necessary to make the UN a more effective organization.

But blame for the UN's inefficacy in the face of many of the world's greatest threats to international security—Iran, North Korea, Sudan—should be blamed chiefly on the Security Council. This seeming dysfunction has led many to call for an enlargement of the Council's permanent membership in order to more accurately represent the current geopolitical dynamic. But while updating the Security Council may be an admirable goal, it would be naive to think that adding Japan, India, or Germany would in some way "fix" it. It is difficult enough as it is to reach a consensus at the Security Council. Adding a few more members will only lengthen deliberations and further dilute resolutions.

The real problem with the Security Council lies in the veto power wielded by the current five permanent members, and especially Russia and China. Those two members have consistently put their own economic and political interests ahead of international security and human rights. Just recently, China and Russia issued their first joint veto since 1972 on a draft resolution that simply condemned Myanmar for its many egregious human rights abuses. Further, their refusal to sacrifice energy or political interests has all but ended any hope of passing significant sanctions against Iran, North Korea, or Sudan. Unfortunately, this obstructionism seems to be problem for which there is no quick fix, for any attempt to limit or eliminate the veto power of any permanent member would certainly be, well, vetoed.

Despite these problems, the United Nations remains both vital and necessary, and any attempt by the United States to minimize its importance would be dangerous. The peacekeeping operations of the UN have been essential in containing some of the world's deadliest conflicts, and UN relief agencies have provided an effective lifeline to the most vulnerable populations across the globe. The Security Council should still remain the forum of choice for peacefully resolving issues of international security, for however difficult the process, a Security Council resolution carries with it unrivaled international legitimacy. As the U.S. has learned over the past four years in Iraq, international consensus is an invaluable asset.

This is not to say, however, that military, economic, or diplomatic actions taken outside the UN are necessarily illegitimate. Since the veto powers of the permanent five inherently limit the effectiveness of the Security Council, the U.S. and its allies should not shy away from working around the UN when necessary. Intergovernmental organizations such as NATO and the EU, international coalitions, and even unilateral actions should be considered if the UN proves itself unable to solve dire issues of international security, national security, and human rights. With the clock ticking on Iran's nuclear program, for example, the U.S. and its European allies cannot rule out looking further into these alternate avenues after exhausting their attempts in the Security Council.

While Mr. Ban could help to make the UN a more effective organization through significant bureaucratic reform, the Security Council's ability to successfully address issues of international security and human rights will always be limited by its member-states—when the foreign policy of countries like Russia and China change, so will the potential of the UN. This is not necessarily a fundamental flaw of the United Nations, but rather a constraint natural to any international organization so dependent upon membership participation.

As Iran increases its influence in the Middle East, genocide continues in Darfur, and Somalia attempts to escape the clutches of anarchy, the world increasingly requires action from the international community. The U.S. must earnestly try to work through and with the United Nations as best and as often as it can, but do so cognizant of the UN's natural limitations.

The Editors

The Yale Institution for Social and Policy Studies

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77 Prospect Street
P.O. Box 208209
New Haven, Connecticut 06520-8209
telephone: 203 432-6188
e-mail: isps@yale.edu

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